PROFESSIONAL SERVICES AGREEMENT BETWEEN CITY OF LAKE STEVENS, WASHINGTON AND DAVID EVANS AND ASSOCIATES, INC. FOR CONSULTANT SERVICES

THIS AGREEMENT ("Agreement') is made and entered into by and between the City of Lake Stevens, a Washington State municipal corporation ("City"), and David Evans and Associates, Inc. authorized to do business in the State of Washington, ("Consultant").

NOW, THEREFORE, in consideration of the terms, conditions, covenants and performances contained herein, the parties hereto agree as follows:

ARTICLE I. PURPOSE

The purpose of this Agreement is to provide the City with consultant services as described in Article II. The general terms and conditions of the relationship between the City and the Consultant are specified in this Agreement.

ARTICLE II. SCOPE OF SERVICES

The Scope of Services is attached hereto as **Exhibit "A"** and incorporated herein by this reference ("Scope of Services"). All services and materials necessary to accomplish the tasks outlined in the Scope of Services shall be provided by the Consultant unless noted otherwise in the Scope of Services or this Agreement. All such services shall be provided in accordance with the standards of the Consultant's profession.

ARTICLE III. OBLIGATIONS OF THE CONSULTANT

III.1 **MINOR CHANGES IN SCOPE**. The Consultant shall accept minor changes, amendments, or revision in the detail of the Scope of Services as may be required by the City when such changes will not have any impact on the service costs or proposed delivery schedule. Extra work, if any, involving substantial changes and/or changes in cost or schedules will be addressed as follows:

> **Extra Work**. The City may desire to have the Consultant perform work or render services in connection with each project in addition to or other than work provided for by the expressed intent of the Scope of Services in the scope of services. Such work will be considered as extra work and will be specified in a written supplement to the scope of services, to be signed by both parties, which will set forth the nature and the scope thereof. All proposals for extra work or services shall be prepared by the Consultant at no cost to the City. Work under a supplemental agreement shall not proceed until executed in writing by the parties.

III.2 **WORK PRODUCT AND DOCUMENTS**. The work product and all documents produced under this Agreement shall be furnished by the Consultant to the City, and upon completion of the work shall become the property of the City, except that the Consultant may retain one copy of the work product and documents for its records. The Consultant will be responsible for the accuracy of the work, even though the work has been accepted by the City.

In the event that the Consultant shall default on this Agreement or in the event that this Agreement

shall be terminated prior to its completion as herein provided, all work product of the Consultant, along with a summary of work as of the date of default or termination, shall become the property of the City. Upon request, the Consultant shall tender the work product and summary to the City. Tender of said work product shall be a prerequisite to final payment under this Agreement. The summary of work done shall be prepared at no additional cost to the City.

Consultant will not be held liable for reuse of documents produced under this Agreement or modifications thereof for any purpose other than those authorized under this Agreement without the written authorization of Consultant.

III.3 **TERM.** The term of this Agreement shall commence upon full signing and shall terminate at midnight December 31st, 2026. The parties may extend the term of this Agreement by written mutual agreement.

III.4 **NONASSIGNABLE**. The services to be provided by the Consultant shall not be assigned or subcontracted without the express written consent of the City.

III.5 **EMPLOYMENT**.

a. The term "employee" or "employees" as used herein shall mean any officers, agents, or employee of the Consultant.

b. Any and all employees of the Consultant, while engaged in the performance of any work or services required by the Consultant under this Agreement, shall be considered employees of the Consultant only and not of the City, and any and all claims that may or might arise under the Workman's Compensation Act on behalf of any said employees while so engaged, and any and all claims made by any third party as a consequence of any negligent act or omission on the part of the Consultant or its employees while so engaged in any of the work or services provided herein shall be the sole obligation of the Consultant.

c. Consultant represents, unless otherwise indicated below, that all employees of Consultant that will provide any of the work under this Agreement have not ever been retired from a Washington State retirement system, including but not limited to Teacher (TRS), School District (SERS), Public Employee (PERS), Public Safety (PSERS), law enforcement and fire fighters (LEOFF), Washington State Patrol (WSPRS), Judicial Retirement System (JRS), or otherwise. *(Please indicate No or Yes below)*

☐ _____ No employees supplying work have ever been retired from a Washington state retirement system.

_____ Yes employees supplying work have been retired from a Washington state retirement system.

In the event the Consultant indicates "no", but an employee in fact was a retiree of a Washington State retirement system, and because of the misrepresentation the City is required to defend a claim by the Washington State retirement system, or to make contributions for or on account of the employee, or reimbursement to the Washington State retirement system for benefits paid, Consultant hereby agrees to save, indemnify, defend and hold City harmless from and against all expenses and costs, including reasonable attorney's fees incurred in defending the claim of the Washington State retirement system and from all contributions paid or required to be paid, and for

all reimbursement required to the Washington State retirement system. In the event Consultant affirms that an employee providing work has ever retired from a Washington State retirement system, said employee shall be identified by Consultant, and such retirees shall provide City with all information required by City to report the employment with Consultant to the Department of Retirement Services of the State of Washington.

III.6 **INDEMNITY**.

a. **Indemnification / Hold Harmless.** Consultant shall defend, indemnify, and hold the City, its officers, officials, employees and volunteers harmless from any and all claims, injuries, damages, losses or suits including attorney fees, arising out of or resulting from the negligence, recklessness, intentional misconduct, violations of law, or breaches of contract of the Consultant in performance of this Agreement.

b. However, should a court of competent jurisdiction determine that this Agreement is subject to RCW 4.24.115, then, in the event of liability for damages arising out of bodily injury to persons or damages to property caused by or resulting from the concurrent negligence of the Consultant and the City, its officers, officials, employees, and volunteers, the Consultant's liability, including the duty and cost to defend, hereunder shall be only to the extent of the Consultant's negligence.

c. It is further specifically and expressly understood that the indemnification provided herein constitutes the Consultant's waiver of immunity under Industrial Insurance, Title 51 RCW, solely for the purposes of this indemnification. This waiver has been mutually negotiated by the parties. The provisions of this section shall survive the expiration or termination of this Agreement.

d. **Public Records Requests.**
In addition to Paragraph IV.3 b, when the City provides the Consultant with notice of a public records request per Paragraph IV. 3 b, Consultant agrees to save, hold harmless, indemnify and defend the City its officers, agents, employees and elected officials from and against all claims, lawsuits, fees, penalties and costs resulting from the consultant's violation of the Public Records Act RCW 42.56, or consultant's failure to produce public records as required under the Public Records Act.

e. The provisions of this section III.6 shall survive the expiration or termination of this agreement.

III.7 **INSURANCE**.

a. **Insurance Term**
The Consultant shall procure and maintain for the duration of the Agreement, insurance against claims for injuries to persons or damage to property which may arise from or in connection with the performance of the work hereunder by the Consultant, its agents, representatives, or employees.

b. **No Limitation**
The Consultant's maintenance of insurance as required by the Agreement shall not be construed to limit the liability of the Consultant to the coverage provided by such insurance, or otherwise limit the City's recourse to any remedy available at law or in equity.

c. **Minimum Scope of Insurance - Consultant shall obtain insurance of the types and coverages described below:**

(1) Automobile Liability insurance covering all owned, non-owned, hired and leased vehicles. Coverage shall be at least as broad as Insurance Services Office (ISO) form CA 00 01.

(2) Commercial General Liability insurance shall be at least as broad as ISO occurrence form CG 00 01 and shall cover liability arising from premises, operations, stop-gap independent contractors and personal injury and advertising injury. The City shall be named as an additional insured under the Consultant's Commercial General Liability insurance policy with respect to the work performed for the City using an additional insured endorsement at least as broad as ISO endorsement form CG 20 26.

(3) Workers' Compensation coverage as required by the Industrial Insurance laws of the State of Washington.

(4) Professional Liability insurance appropriate to the Consultant's profession.

d. **The minimum insurance limits shall be as follows:**
Consultant shall maintain the following insurance limits:

(1) Automobile Liability insurance with a minimum combined single limit for bodily injury and property damage of $1,000,000 per accident.

(2) Commercial General Liability insurance shall be written with limits no less than $2,000,000 each occurrence, $2,000,000 general aggregate.

(3) Professional Liability insurance shall be written with limits no less than $2,000,000 per claim and $2,000,000 policy aggregate limit.

e. **Notice of Cancellation**. In the event that the Consultant receives notice (written, electronic or otherwise) that any of the above required insurance coverage is being cancelled and/or terminated, the Consultant shall immediately (within two business days of receipt of such notice) provide written notification of such cancellation/termination to the City.

f. **Acceptability of Insurers**. Insurance is to be placed with insurers with a current A.M. Best rating of not less than A:VII.

g. **Verification of Coverage**. In signing this agreement, the Consultant is acknowledging and representing that required insurance is active and current. Consultant shall furnish the City with original certificates and a copy of the amendatory endorsements, including but not necessarily limited to the additional insured endorsement, evidencing the insurance requirements of the Agreement before commencement of the work. Further, throughout the term of this Agreement, the Consultant shall provide the City with proof of insurance upon request by the City.

h. **Insurance shall be Primary - Other Insurance Provision.** The Consultant's Automobile Liability and Commercial General Liability insurance policies are to contain, or be endorsed to contain that they shall be primary insurance as respect the City. Any insurance, self-insurance, or self-insured pool coverage maintained by the City shall be excess of the Consultant's insurance and shall not contribute with it.

i. **Failure to Maintain Insurance.** Failure on the part of the Consultant to maintain the insurance as required shall constitute a material breach of contract, upon which the City may, after giving five business days' notice to the Consultant to correct the breach, immediately terminate the Agreement or, at its discretion, procure or renew such insurance and pay any and all premiums in connection therewith, with any sums so expended to be repaid to the City on demand, or at the sole discretion of the City, offset against funds due the Consultant from the City.

j. **City Full Availability of Consultant Limits.** If the Consultant maintains higher insurance limits than the minimums shown above, the City shall be insured for the full available limits of Commercial General and Excess or Umbrella liability maintained by the Consultant, irrespective of whether such limits maintained by the Consultant are greater than those required by this Agreement or whether any certificate of insurance furnished to the City evidences limits of liability lower than those maintained by the Consultant.

k. **Subcontractors' Insurance.** The Contractor shall cause each and every Subcontractor to provide insurance coverage that complies with all applicable requirements of the Contractor-provided insurance as set forth herein, except the Contractor shall have sole responsibility for determining the limits of coverage required to be obtained by Subcontractors. The Contractor shall ensure that the City is an additional insured on each and every Subcontractor's Commercial General liability insurance policy using an endorsement as least as broad as ISO CG 20 10 10 01 for ongoing operations and CG 20 37 10 01 for completed operations.

III.8 **DISCRIMINATION PROHIBITED AND COMPLIANCE WITH EQUAL OPPORTUNITY LEGISLATION**. The Consultant agrees to comply with equal opportunity employment and not to discriminate against client, employee, or applicant for employment or for services because of race, creed, color, religion, national origin, marital status, sex, sexual orientation, age or handicap except for a bona fide occupational qualification with regard, but not limited to, the following: employment upgrading; demotion or transfer; recruitment or any recruitment advertising; layoff or terminations; rates of pay or other forms of compensation; selection for training, rendition of services. The Consultant further agrees to maintain (as appropriate) notices, posted in conspicuous places, setting forth the provisions of this nondiscrimination clause. The Consultant understands and agrees that if it violates this nondiscrimination provision, this Agreement may be terminated by the City, and further that the Consultant will be barred from performing any services for the City now or in the future, unless a showing is made satisfactory to the City that discriminatory practices have been terminated and that recurrence of such action is unlikely.

III.9 **UNFAIR EMPLOYMENT PRACTICES**. During the performance of this Agreement, the Consultant agrees to comply with RCW 49.60.180, prohibiting unfair employment practices.

III.10 **LEGAL RELATIONS**. The Consultant shall comply with all federal, state and local laws and ordinances applicable to work to be done under this Agreement. The Consultant represents that the firm and all employees assigned to work on any City project are in full compliance with the statutes of the State of Washington governing activities to be performed and that all personnel to be assigned to the work required under this Agreement are fully qualified-and properly licensed to perform the work to which they

will be assigned. This Agreement shall be interpreted and construed in accordance with the laws of Washington. Venue for any litigation commenced relating to this Agreement shall be in Snohomish County Superior Court.

III.11 **INDEPENDENT CONTRACTOR**.

a. The Consultant and the City understand and expressly agree that the Consultant is an independent contractor in the performance of each and every part of this Agreement. The Consultant expressly represents, warrants and agrees that his status as an independent contractor in the performance of the work and services required under this Agreement is consistent with and meets the six-part independent contractor test set forth in RCW 51.08.195 or as hereafter amended. The Consultant, as an independent contractor, assumes the entire responsibility for carrying out and accomplishing the services required under this Agreement. The Consultant shall make no claim of City employment nor shall claim any related employment benefits, social security, and/or retirement benefits.

b. The Consultant shall be solely responsible for paying all taxes, deductions, and assessments, including but not limited to federal income tax, FICA, social security tax, assessments for unemployment and industrial injury, and other deductions from income which may be required by law or assessed against either party as a result of this Agreement. In the event the City is assessed a tax or assessment as a result of this Agreement, the Consultant shall pay the same before it becomes due.

c. The City may, during the term of this Agreement, engage other independent contractors to perform the same or similar work that the Consultant performs hereunder.

d. Prior to commencement of work, the Consultant shall obtain a business license from the City.

III.12 **CONFLICTS OF INTEREST.** The Consultant agrees to and shall notify the City of any potential conflicts of interest in Consultant's client base and shall obtain written permission from the City prior to providing services to third parties where a conflict or potential conflict of interest is apparent. If the City determines in its sole discretion that a conflict is irreconcilable, the City reserves the right to terminate this Agreement.

III.13 **CITY CONFIDENCES.** The Consultant agrees to and will keep in strict confidence, and will not disclose, communicate or advertise to third parties without specific prior written consent from the City in each instance, the confidences of the City or any information regarding the City or services provided to the City unless such disclosure is required by law, rule, regulation, court order or government investigation.

III.14 **SUBCONTRACTORS/SUBCONSULTANTS**.

a. The Consultant shall be responsible for all work performed by subcontractors/subconsultants pursuant to the terms of this Agreement.

b. The Consultant must verify that any subcontractors/subconsultants they directly hire meet the responsibility criteria for the project. Verification that a subcontractor/subconsultant has proper license and bonding, if required by statute, must be included in the verification process.

The Consultant will use the following Subcontractors/Subconsultants or as set forth in Exhibit A:

Perteet, Herrera Environmental, Geosyntec, Cultural Resource Consultants, and Commonstreet Consulting

c. The Consultant may not substitute or add subcontractors/subconsultants without the written approval of the City.

ARTICLE IV. OBLIGATIONS OF THE CITY

IV.1 **PAYMENTS**.

a. The Consultant shall be paid by the City for services rendered under this Agreement as described in the Scope of Services and as provided in this section. In no event shall the compensation paid to Consultant under this Agreement exceed $1,121,071.48 without the written agreement of the Consultant and the City. Such payment shall be full compensation for work performed and services rendered and for all labor, materials, supplies, equipment and incidentals necessary to complete the work. In the event the City elects to expand the scope of services from that set forth in Exhibit A, the City shall pay Consultant a mutually agreed amount.

b. The Consultant shall submit a monthly invoice to the City for services performed in the previous calendar month in a format acceptable to the City. The Consultant shall maintain time and expense records and provide them to the City upon request.

c. The City will pay timely submitted and approved invoices received before the 20th of each month within thirty (30) days of receipt.

IV.2 **CITY APPROVAL**. Notwithstanding the Consultant's status as an independent contractor, results of the work performed pursuant to this Agreement must meet the approval of the City, which shall not be unreasonably withheld if work has been completed in compliance with the Scope of Services and City requirements.

IV.3 **MAINTENANCE/INSPECTION OF RECORDS**.

a. The Consultant shall maintain all books, records, documents and other evidence pertaining to the costs and expenses allowable under this Agreement in accordance with generally accepted accounting practices. All such books and records required to be maintained by this Agreement shall be subject to inspection and audit by representatives of the City and/or the Washington State Auditor at all reasonable times, and the Consultant shall afford the proper facilities for such inspection and audit. Representatives of the City and/or the Washington State Auditor may copy such books, accounts and records where necessary to conduct or document an audit. The Consultant shall preserve and make available all such books of account and records for a period of three (3) years after final payment under this Agreement. In the event that any audit or inspection identifies any discrepancy in such financial records, the Consultant shall provide the City with appropriate clarification and/or financial adjustments within thirty (30) calendar days of notification of the discrepancy.

b. **Public Records.**

The parties agree that this Agreement and records related to the performance of the Agreement are with limited exception, public records subject to disclosure under the Public Records Act RCW 42.56. Further, in the event of a Public Records Request to the City, the City may provide the Consultant with a copy of the Records Request and the Consultant shall provide copies of any City records in Consultant's possession, necessary to fulfill that Public Records Request. If the Public Records Request is large the Consultant will provide the City with an estimate of reasonable time needed to fulfill the records request.

ARTICLE V. GENERAL

V.1 **NOTICES**. Notices to the City and Consultant shall be sent to the following addresses or electronically delivered with confirmation of delivery from the recipient :

To the City:	**To the Consultant:**
City of Lake Stevens	Ravyn Whitewolf
Attn: City Clerk	1221 Fraser Street, Suite E3
Post Office Box 257	Belligham, WA 98225
Lake Stevens, WA 98258	Ravyn.whitewolf@deainc.com
Telephone: 425-622-9412	360-355-2563

Receipt of any notice shall be deemed effective three (3) days after deposit of written notice in the U.S. mail with proper postage and address.

V.2 **TERMINATION**. The right is reserved by the City to terminate this Agreement in whole or in part at any time upon ten (10) calendar days' written notice to the Consultant.

If this Agreement is terminated in its entirety by the City for its convenience, the City shall pay the Consultant for satisfactory services performed through the date of termination in accordance with payment provisions of Section IV.1.

V.3 **DISPUTES**. The parties agree that, following reasonable attempts at negotiation and compromise, any unresolved dispute arising under this Agreement may be resolved by a mutually agreed-upon alternative dispute resolution of arbitration or mediation.

V.4 **EXTENT OF AGREEMENT/MODIFICATION**. This Agreement, together with attachments or addenda, represents the entire and integrated Agreement between the parties and supersedes all prior negotiations, representations, or agreements, either written or oral. This Agreement may be amended, modified or added to only by written instrument properly signed by both parties.

V.5 **SEVERABILITY.**

a. If a court of competent jurisdiction holds any part, term or provision of this Agreement to be illegal or invalid, in whole or in part, the validity of the remaining provisions shall not be affected, and the parties' rights and obligations shall be construed and enforced as if the Agreement did not contain the particular provision held to be invalid.

b. If any provision of this Agreement is in direct conflict with any statutory provision of the State of Washington, that provision which may conflict shall be deemed inoperative and null and void insofar as it may conflict, and shall be deemed modified to conform to such statutory provision.

V.6 **NONWAIVER**. A waiver by either party hereto of a breach by the other party hereto of any covenant or condition of this Agreement shall not impair the right of the party not in default to avail itself of any subsequent breach thereof. Leniency, delay or failure of either party to insist upon strict performance of any agreement, covenant or condition of this Agreement, or to exercise any right herein given in any one or more instances, shall not be construed as a waiver or relinquishment of any such agreement, covenant, condition or right.

V.7 **FAIR MEANING**. The terms of this Agreement shall be given their fair meaning and shall not be construed in favor of or against either party hereto because of authorship. This Agreement shall be deemed to have been drafted by both of the parties.

V.8 **GOVERNING LAW.** This Agreement shall be governed by and construed in accordance with the laws of the State of Washington.

V.9 **VENUE.** The venue for any action to enforce or interpret this Agreement shall lie in the Superior Court of Washington for Snohomish County, Washington.

V.10 **COUNTERPARTS AND SIGANTURES.** This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, but all of which shall constitute one and the same Agreement. Digital, electronic, and PDF signatures will constitute an original in lieu of the "wet" signature.

V.11 **AUTHORITY TO BIND PARTIES AND ENTER INTO AGREEMENT**. The undersigned represent that they have full authority to enter into this Agreement and to bind the parties for and on behalf of the legal entities set forth below.

DATED this 8th day of May, 2025.

CITY OF LAKE STEVENS

By:_____
Brett Gailey, Mayor

Approved as to Form:

By: Greg Rubstello (May 8, 2025 08:57 PDT)
Greg Rubstello, City Attorney

DAVID EVANS AND ASSOCIATES, INC.

By: Ravyn Whitewolf
Ravyn Whitewolf (May 8, 2025 14:31 PDT)
Ravyn Whitewolf

Kash Nikzad

EXHIBIT A - SCOPE OF WORK

Catherine Creek Bridge Replacement

Background:

This Scope of Work (SOW) details engineering services to be performed by David Evans and Associates, Inc. team (Consultant) in support of City of Lake Stevens (City) effort to replace the deteriorating bridge crossing Catherine Creek.

This project will include the construction of a new bridge over Catherine Creek, demolition of the existing bridge, and roadway improvements. The current bridge's timber abutments have deteriorated beyond repair and the bridge has been restricted to one vehicular lane. Additionally, the current bridge confines the stream, and a replacement bridge will return the stream to its natural course and improve stream health.

A preliminary study has been completed, and the replacement bridge is recommended to be a prestressed concrete girder bridge. During 30 percent structural design, the Consultant will work with the city to finalize the type and size of the bridge to be designed as further outlined herein.

The adjacent roadway will be upgraded to the City's collector road standards, and the feasibility for the 36th St/Grade Road intersection realignment to be investigated. The project will also incorporate surveying and right-of-way (ROW) acquisition services for both permanent ROW acquisition and temporary construction easements, as needed. This project is funded with local city funds, Public Work Board loans, and the City is seeking to secure federal funding.

The work to be performed by the selected Consultant may include; preparation of the PS&E including design of the project, preparation of project plans and specifications in compliance with local, state, and federal requirements, an estimate of construction costs, right of way acquisition and certification, environmental permitting, right of way acquisition, surveying, geotechnical design, and cultural resource investigation. The City reserves the right to retain the services of the Consultant, through a supplement to this contract, to provide services for any subsequent phases, including, pre-bid support and Construction phase engineering such as: submittal reviews, RFIs, change orders, on-site inspections, contract close out, and other construction-related tasks.

The Consultant team responsible for completing the SOW as described here is as follows:

- David Evans and Associates, Inc. (DEA) will serve as the prime contractor providing – Project Management, Topographic Survey, Stormwater Design; Public Outreach, Constructability/ Construction Schedule & Estimation; and Structural Engineering.
- Perteet – Civil Design
- Herrera Environmental (Herrera) - Hydraulics Engineering & Permitting Support
- Geosyntec - Geotechnical Engineering
- Cultural Resource Consultants (CRC) - Cultural Resources
- Commonstreet Consulting (Commonstreet) - Right-of-way Acquisition

Initial Scope Summary:

- Project administration and management throughout project duration.
- Evaluation of possible bridge types to be used in the project.
- Civil and structural engineering design for the proposed bridge replacement. Design will also include support, as necessary, for City permitting requirements applicable to the project.
- Civil engineering design for the proposed roadway improvements to collector standards, and possible improvements to the 36th St/ Grade Road intersections
- An Alternatives Analysis level of geotechnical engineering investigation and final report was completed. No additional geotechnical explorations are needed to support the bridge replacement PS&E. This scope includes geotechnical engineering design collaboration, input to plans and specifications, and preparation of a geotechnical engineering addendum in support of the final structure design.
- Hydraulic design of the bridge, restoration of natural stream alignment, following WFDW Water Crossing Design Guidelines and other design standards.
- Preparation of 30, 60, 90, and 100 percent (bid-ready) plans, specifications/special provisions, and estimate (PS&E) packages for review by City staff. Subsequently, preparation of an advertisement-ready PS&E package for advertisement of the invitation for public works contract bids.
- Environmental permitting to follow US Army Corps of Engineers, Department of Ecology, Washington Department of Fish and Wildlife, SEPA, and other regulations. Develop critical areas report, mitigation, and monitoring plans.
- Development and preparation of project Stormwater Site Plans to comply with the applicable Minimum Requirements of the 2024 Stormwater Management Manual for Western Washington, including incorporation of required design and construction elements into the project PS&E packages.
- Perform, on behalf of the City, value assessments and lead negotiations for ROW acquisition to complete the project and temporary construction easements and other property access needs for construction.
- Surveying, including property line surveying, and mapping as necessary to support PS&E package and ROW acquisition/temporary construction easement needs.

Reports and plans, to the extent feasible, shall be developed in accordance with the latest edition and amendments of the following guidelines and documents:

- 2021 City of Lake Stevens Catherine Creek Alternative Study Report and Appendices "Alternatives Study"
- City of Lake Stevens Development Guidelines
- AASHTO 2001, "A Policy of Geometric Design of Highways and Streets"
- Washington State Department of Transportation, "Standard Specifications for Road and Bridge Construction"
- Washington State Department of Transportation, "Design Manual"
- Washington State Department of Transportation, "Bridge Design Manual"
- AASHTO LRFD Bridge Design Specifications
- Washington State Department of Transportation, "Materials Laboratory Outline"
- Washington State Department of Transportation, "Construction Manual"
- Washington State Department of Transportation, "Local Agency Guidelines"
- Department of Ecology "Stormwater Management Manual for Western Washington," 2024 Edition
- CONSULTANT and Washington State Department of Transportation, "Manual on Uniform Traffic Control Devices for Streets and Highways"
- Standard drawings prepared by City shall be used as a guide in cases where they fit design conditions.
- AASHTO "Guide for the Development of Bicycle Facilities"
- WSDOT Highway Runoff Manual
- WSDOT Hydraulics Manual

WORK ELEMENT 1 PROJECT MANAGEMENT

This work element includes administration of the contract between the DEA and the City, preparation of monthly progress reports and quality control, necessary for the Project. The task includes administrative services needed to coordinate with the sub-consultant/s and to complete the Project on time and within budget. The following are the categorized activities associated with this work element:

- Kickoff meeting with Design Team and City Staff
- Project Schedule
- Meetings and Meeting Minutes – approximately 40 biweekly meetings for up to one half hour in length with the City's project manager are assumed, with select design team members and City staff as warranted for the duration of the design activities

- Monthly Progress Reports, and Invoicing. Progress reports will contain a summary of project activities performed in the previous month for a period of 12 months.
- Design Team Management:
    a. Schedule and coordinate with design team.
    b. Prepare sub-consultant agreements, coordinate, budget and review the project progress and submittals.
    c. Prepare, monitor, and update project schedule. Monitor project budget.
    d. Prepare monthly billings, progress reports, and updated monthly project schedule.
    e. Maintain regular informal contact telephone discussions, and electronic mail.
    f. Obtain, with assistance from the City, rights of entry necessary for geotechnical and hydraulic studies, etc.
    g. In the event that the City has a change in the City's project manager, the Team will meet with the new project manager and the Consultant, provide a summary of design for this work element and progress, provide a summary of decisions made, and provide past deliverables to date. This effort is included in this task. If changes to completed design efforts and/or Scope of Services are requested due to the change in City's project manager, this will require a supplement to the Agreement.

Assumptions:

- Assumes a contract length of 12 months, meetings up to one half hour unless indicated otherwise.
- Assumes 2026 construction. Updates to later versions of GSPs and to construction cost estimating are not included in this scope.
- Consultant rates in the contract are for 2025. With the City's authorization, 2026 rate increases, if any, may be allowed per WSDOT guidelines.

Deliverables:

- Progress Reports
- Meeting Minutes
- Monthly Invoicing
- Project Schedule
- Communications Plan

WORK ELEMENT 2 DATA GAP ANALYSIS

This Work Element will be provided by Herrera.

2.1 Project Management

Herrera's project manager will be responsible for ongoing contract administration of Herrera's work, including reviewing accounting invoices and preparing progress reports, as well as

coordination of work efforts with DEA's designated client point of contact (Ravyn Whitewolf). Herrera's project manager will have phone and e-mail contact with DEA on an as-needed basis. Regular check-ins and project milestones will be established as the final project schedule is developed, after the notice to proceed. Herrera will provide Quality Assurance and Quality Control (QA/QC) throughout the active project work and at key project milestones.

Assumptions:

- Herrera's project management and coordination work is expected to include approximately 12 months of active project support.
- Up to four Herrera team members will attend one 2-hour virtual kickoff meeting with DEA and the City to discuss the project. The kickoff meeting is assumed to require up to 8 hours of Herrera staff time for preparation and follow-up. Kickoff meeting will be hosted online via Microsoft (MS) Teams.
- Team check-in meetings with DEA are assumed to occur once every 2 weeks through project delivery.

Deliverables and Schedule:

- Kickoff Meeting Notes: 1 week following kickoff meeting.
- Invoices for work performed accompanied by monthly progress reports.

2.2 Data Gap Analysis Detail

This Work Element will be led by Herrera with support from the City, DEA, and other consultant team members. The intent of this task is to assess changes in the site conditions, stream characteristics and ground changes since the Alternatives Study and will include an abbreviated site investigation completed by two Herrera staff for ½ day.

Although a desktop review of public agency mapped and documented environmental documentation regarding the site was previously reviewed in 2021, a review for any updated public environmental data will be conducted at project initiation to identify any additional field reconnaissance or data collection necessary to support the project design's and permitting.

Herrera's previously conducted hydraulic and geomorphic field work evaluated the existing streambed substrate conditions, streambank conditions, noted the presence of Large Woody Debris (LWD), and other instream and riparian habitat characteristics important for the development of a successful and sustainable restoration design. During the abbreviated site investigation Herrera will verify if these previous observations and the delineated Ordinary High-Water Mark (OHWM) remain consistent. Any notable changes since the 2020 site visit could influence the stream restoration design. Updates will provide crucial insight into hydraulic, environmental, and geomorphic processes and conditions of the site.

Herrera will utilize a GPS/GIS mapping system to document areas where significant differences are observed. However, professional survey and/or additional formal delineation of the OHWM or other site features are not included in this scope and will need to be conducted under additional task work or a supplemental budget. Herrera will leverage this foundational work to complete and align the hydraulic analysis with the current project goals to ensure a resilient hydraulic design.

Assumptions:

- City to provide support to Consultant for rights of entry
- City personnel to assist Herrera field personnel with local knowledge of data gaps.
- Field equipment and travel time expense for two Herrera staff will be included in this task.
- Any identified data gaps that will require professional survey will be completed by the project surveyor under a separate task.
- No additional wetland or stream delineation will be required. Any significant changes observed during the data gap analysis requiring additional field delineation will need to be conducted under additional task work or a supplemental budget.

Deliverables:

- A bulleted list of any data gaps identified during the work will be prepared for electronic (email) delivery. The data gap list is not anticipated to be more than 2 pages with appended photos, GPS points mapping, survey sketch map, etc.)

WORK ELEMENT 3 SURVEYING

This Work Element will be provided by DEA to provide topographic survey and engineering basemaps.

Updated topographic survey of the project site will be required in order to accurately assess existing hydraulic conditions, generate accurate construction quantities, and facilitate development of a proposed conditions hydraulic model. Survey will focus on capturing additional planimetric and roadway features beyond the limits of the original survey or those features that have changed since the 2021 Alternatives Study to capture data which will inform the 30% design effort.

The design is anticipated to require documents in support of Temporary Construction Easements (TCEs) and Right of Way acquisition. As part of this task, DEA will also prepare one round of a maximum of five legal-description/exhibit packets and a right of way map for use by Commonstreet. The right-of-way acquisition process must comply with the Washington State Department of Transportation (WSDOT) requirements in the event Federal funding is obtained and the right of way needs to be certified.

Assumptions:

- Deliverables will be stamped by a Professional Land Surveyor licensed to practice in the State of Washington.
- No unverified third-party data will be included in DEA's stamped deliverables.
- Any service which, in the opinion of DEA personnel, is unsafe to perform, will be postponed or excluded from this SOW.
- The fee estimate assumes that additional data can be gathered within one workday and one workday to verify monuments and right of way. Time of the survey beyond this will require a scope and budget modification.
- Preparation of preliminary TCE exhibits as well as supporting legal description/exhibit packets will be prepared subsequent to completion of negotiation with adjoining owners. Preparation of additional iterations of exhibits or descriptions if modifications are required will necessitate a scope and budget modification or authorization of additional funds.
- Mileage will be invoiced per Federal rates.

Meetings:

None included as part of this task.

Deliverables:

- CAD files (Civil 3D 2019 or later) containing acquired and derived data in the NAD83(2011) horizontal datum (state plane coordinate system, Washington North) and the NAVD88 vertical datum.
- A Maximum of four (4) legal description/exhibit packets suitable for inclusion in recorded instruments prepared by others.

WORK ELEMENT 4 GEOTECHNICAL ENGINEERING:

Geosyntec will begin with a review of the October 6, 2020 Geotechincal Engineering Report, and participate in a kickoff meeting with the DEA team.

Geosyntec will collaborate with the project structural engineer, stream hydraulics and hydrology engineer, and civil engineer, on geotechnical engineering aspects of the final bridge, abutments, wingwalls, approaches, pavement, and related project elements.

Geosyntec will collaborate with DEA to assess suitable methods of stormwater management such as dispersion, infiltration into unsaturated embankment fill, collection and offsite conveyance, etc.

Geosyntec will provide input to geotechnical-related aspect of the final plans, specifications. Input will be provided as redline markups to plans, and track changes input/comments to project specifications.

As the final PS&E elements are being completed, Geosyntec will produce geotechnical engineering addendum to the October 6, 2020 geotechnical engineering report, that is mutually supportive of final-design-specific project elements.

Geosyntec will provide contract administration and will manage its scope and budget. Invoices and brief reports of progress will be provided on a monthly frequency.

Assumptions:

- The replacement structure will be prestressed concrete girder bridge with abutments on spread footings founded below design scour elevation

Meetings:

Geosyntec staff will participate in up to four project meetings: a kickoff meeting, two to three design coordination meetings, and up to one meeting related to the geotechnical engineering addendum report and/or the final PS&E document preparation.

Deliverables:

- Geotechnical engineering addendum report for inclusion in the PS&E documents.

WORK ELEMENT 5 HYDRAULIC ANALYSIS AND RESTORATION DESIGN

This work Element will be performed entirely by Herrera. The following subtasks provide descriptions of the work and services to be provided under each task.

5.1 Hydraulic Analysis and Restoration Design

Any necessary updates to the existing conditions SRH-2D hydraulic model previously developed will be based on the information gathered during the site investigation conducted during the Task 2 Data Gap Analysis. The existing conditions hydraulic model input data will be updated as may be applicable based on professional judgement, such as adjustments to the Manning's n values, any changes in the WDFW's climate change flow estimations, and Herrera's assessment regarding whether recent changes in the watershed, land use, or upstream conditions are likely to significantly change the previously evaluated design flow rates at the Catherine Creek Bridge.

Updated proposed conditions modeling will be developed consistent with an updated replacement bridge structure design geometry that can accommodate the channel's hydraulic and geomorphic processes. Herrera's prior analysis for a new bridge with a wider hydraulic opening and skewed angle to better match the angle of the floodplain at the crossing demonstrated flow entrainment along the bridge abutments would be reduced while also minimizing scour impacts. The proposed conditions model will be updated with proposed bridge geometry and used to generate outputs such as flow velocities and flow depths important for developing the channel

design, assessing and designing for flooding and scour risks to the bridge abutment and stream banks, as well as for maximizing instream channel habitat, floodplain connectivity, and natural channel processes. Scour calculations will be completed with the FHWA toolbox provided as part of the SRH-2D software. Draft scour and hydraulic design calculations will be documented in the 60% design package and finalized in the 90% design package.

Updates to the proposed conditions model will occur during development of the 30%, 60% and 90% design plans. Herrera will incorporate Quality Assurance/Quality Control QA/QC during all phases of the project.

Assumptions:

- The hydraulic analysis will use the same hydrologic inputs and flow rates documented in the Hydraulic Analysis (Herrera 2021) completed for the Alternative analysis in 2021 with any updates made consistent with the Task 2 Data Gap Analysis.
- The proposed bridge design will meet the WDFW Water Crossing Design Guidelines as a matter of permit compliance.
- The geomorphic analysis of Catherine Creek within the project boundaries will focus on potential long-term aggradation and degradation and risks to the proposed structure.
- DEA will provide a working CAD basemap for both existing conditions and proposed conditions to be used for modeling and design. The existing conditions basemap will illustrate the ROW limits and property boundaries, as well as the site's critical areas, including the OHWM, floodplain extents, and wetland boundaries. The proposed conditions basemap will illustrate the proposed locations, extents, and limits of grading associated with the revised roadway and embankment, bridge, and retaining walls.

Deliverables:

- Emailed model results screen shots showing proposed conditions flow depths and velocities corresponding to the design developed for the 30% Design Package listed in Task 5.2.1.
- Draft 60% Hydraulic and Restoration Design Memorandum in pdf and Word format, including draft scour analysis and hydraulic design calculations, to be submitted with the 60% Design Package listed in Task 5.2.2.
- Final 90% Hydraulic and Restoration Design Memorandum in pdf format, including final scour analysis and hydraulic design calculations, to be submitted with the 90% Design Package listed in Task 5.2.3.

5.2 Restoration Design

The Catherine Creek Bridge Project crossing, situated in the Lower Pilchuck watershed of Water Resource Inventory Area (WRIA) 7 (Snohomish) provides spawning habitat for coho salmon (*Oncorhynchus kisutch*). Puget Sound steelhead (*O. mykiss*), federally listed as threatened with protection through provisions of the Endangered Species Act, are also documented in Catherine

Creek. The existing channel also has a natural capacity to meander and migrate across its floodplain. As the stream restoration design lead, Herrera will follow the WDFW Water Crossing Design Guidelines and Stream Habitat Restoration Guidelines as well as the design guidance within Chapters 7 and 10 of the WSDOT Hydraulics Manual in developing a channel restoration design that maximizes restoration of natural floodplain, geomorphic, and hydraulic processes and thereby also supports fish passage as well as promotes the quantity and quality of instream habitat.

Herrera previously noted during its investigation in 2020 that much of the stream channel was devoid of in-channel large woody debris (LWD) which supports the complexity in habitat required by fish. By strategically placing LWD material in the stream, the design will encourage natural habitat formation and improve stream complexity. Improving the hydraulic opening of the crossing and returning the channel to a more natural alignment will also facilitate the transport of streambed sediment to downstream reaches, thus improving spawning habitat for anadromous salmon and reducing the risk of erosion or sedimentation imbalances.

Assumptions:

- DEA will provide a working CAD basemap for both existing conditions and proposed conditions to be used for modeling and design. The existing conditions basemap will illustrate the ROW limits and property boundaries, as well as the site's critical areas, including the OHWM, floodplain extents, and wetland boundaries. The proposed conditions basemap will illustrate the proposed locations, extents, and limits of grading associated with the revised roadway and embankment, bridge, and retaining walls.
- Design plan drawings will be prepared using AutoCAD 2025 software.
- Drawings will be prepared in accordance with the City's drafting and CAD standards. DEA will coordinate drafting standards, proposed line types, legend items, and abbreviations, and a title block for Herrera to use.
- All Channel Restoration Design plans will follow WDFW Water Crossing Design Guidelines, WDFW Stream Habitat Restoration Guidelines, and Chapters 7 and 10 of the WSDOT Hydraulics Manual.
- The proposed bridge design will meet the WDFW Water Crossing Design Guidelines as a matter of permit compliance.
- Proposed structure design will be shown on separate civil sheets
- Herrera will lead design of all planting, seeding, mulching, and sodding work for the restoration of the creek and floodplain areas. Roadside restoration elements will be completed by DEA.

Deliverables:

- Four design submittals: 30%, 60%, 90% Draft Final, Final 100% Bid Ready
- Habitat Restoration Design plans to be prepared by Herrera will include up to 12 sheets as indicated in the table at the end of this Scope of Work.

5.2.1 30% Restoration Design

The 30% design plans will be developed to support permit application documents prepared under Task 6 which require additional elements that are typically developed during 60% design, such as TESC plans, temporary construction fish isolation and flow diversions, etc., as indicated in the Plan Sheet Summary Table.

Assumptions:

- Herrera's robust 30% design will follow the standards listed below in order of precedent with the first item having the highest priority.
  1. City of Lake Stevens Standards
  2. Snohomish County Standards
  3. Washington State Standards
  4. American Association of State Highway and Transportation Officials (AASHTO) standards
- Budget for this sub-task includes the labor necessary to complete preliminary stream channel engineering and a preliminary restoration plan design, assuming the impact assessment described in Task 6 has been completed, and analysis in support of the overall 30% design plans.

Deliverables:

- Drawing plan sets will be on 11"x17" (half-size) electronic .pdf (Adobe) file format.
- Cost estimate in bid tab format, in Microsoft Excel electronic file format.
- Draft construction contract document content in electronic .docx (Microsoft Word) file format, including special provisions in Divisions 2 through 9.
- Draft engineer's opinion of construction cost estimate in bid tab format in electronic .xlsx (Microsoft Excel) file format.

5.2.2 60% Restoration Design

The 60% design submittal will include updates to the design developed for the 30% submittal, as well as an anticipated list of draft technical special provisions ("spec list") to be developed in future final design phases. Herrera will submit a "spec list" identifying the main specification sections and the measurement and payment items identified to be consistent with the bid tabs in the engineer's cost estimate for Herrera's portion of the design work. The drawings listed in the Plan Sheet Summary Table are those anticipated to be included in Herrera's portion of the 60% design submittal.

Assumptions:

- Design plan drawings will be prepared using the same standards and assumptions cited under Sub-Task 5.21.
- Budget for this sub-task includes the labor necessary to complete all stream channel, bank, and large wood engineering and mitigation/planting plan design and analysis in

support of the 60% design plans. Planting plan design will be consistent with the mitigation plan developed under Task 6.

- Drawings specific for the permit application submittals are not included in this sub-task but are included in Task 6.
- The spec list will assume that the specifications will be in APWA format and will be considered supplements to the current Washington State Department of Transportation Standard Specifications for Road, Bridge, and Municipal Construction.
- The City will provide informal review during design development to assist Herrera in optimizing the design in terms of schedule and budget.

Deliverables:

- Drawing plan sets will be on 11”x17” (half-size) electronic .pdf (Adobe) file format.
- Spec list identifying anticipated special provision specification sections and measurement and payment for bid items to be developed by Herrera in further design deliverables; the list of anticipated special provisions will be provided in either electronic MS Word or MS Excel file format.
- Cost estimate for Herrera’s design items in bid tab format, in Microsoft Excel electronic file format.

5.2.3 90% (Draft Final) Restoration Design

A 90% (Draft Final) restoration design package will be developed to incorporate all City comments and feedback from the 60% permit document review. The 90% design package will include revised and expanded design plans and a complete draft of the technical special provisions. The 90% plan set will serve as a draft 100% plan set and will be developed to a standard level of design detail that includes all design elements needed for construction (i.e., no “new” design elements will be added to advance the design to 100% completion after this submittal). The Plan Sheet Summary Table identifies the drawing sheet list anticipated for the 90% (draft final) design submittal.

Assumptions:

- Budget for this task includes the labor necessary to complete all 90% restoration design engineering design and analysis.
- Budget for this task assumes up to 3 meetings with the City and stakeholders to discuss the design and comments from agencies. Each meeting will be attended by up to two Herrera team members and each is assumed to be 5 hours in duration including travel.
- Herrera will prepare technical special provisions for restoration design elements supplementing Divisions 2 through 9 of the WSDOT Standard Specifications.
- Special provisions will be in APWA format and will be considered supplements to the current Washington State Department of Transportation Standard Specifications for Road, Bridge, and Municipal Construction.

- The City will provide any general contract provisions or Division 1 specifications necessary.
- DEA will compile all general and technical special provisions into one complete set of special provisions.
- The City will provide informal review during preliminary design development to assist Herrera in optimizing the design in terms of schedule and budget.

Deliverables:

- 1 copy of Herrera's drawings on 11"x17" (half-size) electronic .pdf (Adobe) file format.
- 1 copy of Herrera's drawings in 22"x34" (full size) electronic .pdf (Adobe) file format.
- Draft of special provisions in Divisions 2 through 9 in electronic .docx (Microsoft Word) file format.
- Draft opinion of construction cost estimate in bid tab format in electronic .xlsx (Microsoft Excel) file engineer's format.

5.2.4 Final 100% (Bid-Ready) Restoration Design

A Final 100% (bid ready) design will be developed to incorporate all comments and feedback from the 90% (draft final) design submittal. The Final stamped 100% bid-ready plans, special provisions, and engineer's opinion of construction cost estimate will be submitted in electronic file formats ready for insertion into the overall construction contract documents. The Plan Sheet Summary Table identifies the drawing sheet list anticipated for the Final 100% (bid-ready) design submittal.

Assumptions:

- Budget for this sub-task includes the labor necessary to complete all engineering design and analysis for this stage of the stream restoration and mitigation components of the project.
- It is assumed that the 90% review comments will be minor in nature and not reflect any significant changes to design.
- It is assumed there will be no 100 percent comments. 100 percent plans will be bid-ready.
- Special provisions will remain in APWA format and will be considered supplements to the current Washington State Department of Transportation Standard Specifications for Road, Bridge, and Municipal Construction.
- DEA will compile all general and technical special provisions into one complete set for the bid-ready construction contract documents.
- The City will advertise for contractor Bids.
- This sub-task does not include construction bidding support.

Deliverables:

- Signed and stamped design plans in 11"x17" (half size) electronic .pdf (Adobe) file format.

- Signed and stamped design plans in 22"x34" (full size) electronic .pdf (Adobe) file format.
- Technical special provisions for construction stamped and signed by a professional engineer licensed in the State of Washington in electronic .pdf (Adobe) file format.
- All special provisions in electronic .docx (Microsoft Word) file format.
- Final engineer's opinion of construction cost estimate in Microsoft Excel electronic file format.
- Complete copy of electronic drawing files in AutoCAD and Civil 3D file formats.

WORK ELEMENT 6 - ENVIRONMENTAL PERMITTING

Based on Herrera's prior environmental review, the proposed bridge replacement is consistent with the mitigation sequencing requirements to avoid, minimize and or mitigate project-associated environmental impacts. Although the bridge may span directly over the creek channel, it is anticipated that limited construction impacts to the associated floodplain wetlands will occur. The project is anticipated to be self-mitigating, as the bridge design will provide an overall benefit to fish habitat. Any temporary construction impacts would be expected to be restored in-kind and/or enhanced through the removal of invasive plant species, such as blackberry from the project area and the installation of native plants. Replacement of any removed native trees to maintain forest habitat conditions will be recommended.

Projects resulting in potential alterations to waterbodies or wetlands, including in-water and over-the-water work, require permitting reviews by federal (US Army Corps of Engineers), Washington Departments of Ecology and Fish and Wildlife (WDFW) and the City of Lake Stevens for the environmental regulatory compliance. Documentation to support the federal requirements of the Clean Water Act (CWA) Section 404 project review includes compliance with Section 7 of the Endangered Species Act.

Required compliance with Section 106 of the National Historic and Preservation Act will be conducted by others.

6.1 Agency Coordination – Pre-Application Meeting

Herrera will coordinate a pre-application on-line meeting with jurisdictional federal (U.S. Army Corps of Engineers), state (Washington Departments of Ecology (Ecology) and Fish and Wildlife (WDFW), and City of Lake Stevens agency staff and key project stakeholders. The draft Joint Aquatic Resources Permit Application (JARPA) and site plans, based on a robust 30%-60% design, will be prepared for submittal to attending agencies. Proposed restoration/enhancement to compensate for any project-associated impacts to riparian and/or forest wetland vegetation will be discussed with the agencies for concurrence.

6.2 State Environmental Policy Act (SEPA) Checklist

Herrera will prepare a SEPA Checklist for submittal to the City for making a SEPA compliance determination. Representative project components to be included in the SEPA Checklist include air quality, critical and sensitive areas, cultural resources/historical structures, noise, land use, transportation, environmental health, aesthetics, and public services and utilities. Information collected from design plans, site investigations, and other available resources will be utilized in the preparation of the SEPA Checklist. DEA and other consultant team members will provide input for the draft checklist in regards to narrative of project design features and construction methods and equipment for bridge and roadway work.

6.3 Project Description, JARPA Form, and JARPA Site Plans

The Herrera team will prepare a Joint Aquatic Resources Permit Application (JARPA) form and supporting figures in support of the permit applications from the Corps (Clean Water Act [CWA], Section 404 permit) and Ecology (CWA Section 401 Water Quality Certification). The JARPA form will include information pertaining to the applicant, property owners, project location, project description, OHWM, and necessary permits. The Herrera team will prepare JARPA figures according to Corps formatting guidelines including a vicinity map, property ownership information, plan views, and representative cross-sections for each restoration site. The JARPA figures will identify all clearing areas, quantities of excavation and fill and identify all restoration actions and other temporary work proposed within the floodplain, any associated wetlands and proposed to occur waterward of the OHWM and adjacent upland protected buffer areas. The consultant team will respond to one set of consolidated comments on the draft JARPA from the City. Herrera will address the comments and produce a final JARPA.

Once submitted, Herrera will provide project support in the preparation of responses to questions and comments provided by the Corps and Service agencies.

6.4 Hydraulic Project Approval (HPA) through WDFW's on-line application system (APPS)

As the City's authorized agent, Herrera will utilize the information prepared in the JARPA and ESA documents to complete the application for the HPA submittal through WDFW's online platform APPS. WDFW will not process the application until the City's SEPA determination is uploaded. Easements and or authorizing signatures for all property owners where work is to be performed must be submitted as a component of the application.

6.5 USACE Clean Water Act (CWA) Section 401 Application Submittal

On behalf of the City, Herrera will submit the JARPA, JARPA site plans, ESA documentation and critical areas report to the USACE for review according to a CWA Section 404 authorization. Submittal will be electronic through the USACE's email account.

6.6 Section 7 Endangered Species Act Consultation

Herrera will prepare documentation summarizing potential impacts to listed species and critical habitat federally protected according to the provisions of the Endangered Species Act (ESA) and Essential Fish Habitat (EFH) that is protected according to the provisions of the Magnuson-Stevens Fishery Conservation and Management Act. It is anticipated that the project will result in a "may affect, not likely to adversely affect" determination and that informal consultation with the National Marine Fisheries Service (NMFS) and U.S. Fish and Wildlife Service (USFWS), collectively known as the "Services" will meet the ESA compliance requirements for the project. The format of the documentation may be based on a Specific Project Information Form (SPIF), Biological Evaluation report or other programmatic Implementation form, as applicable.

The ESA documentation will draw upon the JARPA and site plans and will include discussion of equipment expected to be used during construction and potential staging areas. Conservation measures (e.g., minimization measures and compensatory mitigation) will be recommended to offset potential impacts on listed species.

6.7 Critical Areas Site Assessment and Mitigation Plan

Herrera will prepare a Critical Areas Assessment and Mitigation Plan according to the permit review requirements of the City. The site assessment will characterize all City regulated critical areas (wetlands, fish and wildlife habitat and associated protective buffers) present within the project area. The Plan report will utilize the information prepared in the JARPA, JARPA site plans and ESA documentation to describe the project, potential environmental impacts and recommendations for conservation measures and best-management practices according to the requirements for mitigation sequencing to avoid, minimize and or compensate for any permanent and temporary project-associated impacts or alternations to critical areas. Performance standards for long-term monitoring of the installed native vegetation and habitat features at the site will be included in the report.

6.8 Ecology CWA Section 401 Water Quality Certification Pre-Project Notifications

Herrera will submit two required pre-project notifications to Ecology for their review of requirements for CWA Section 401 Water Quality Certification. The first notification is required for submittal 30 days prior to the JARPA submittal. The second notification is at the time of the JARPA submittal to the USACE.

The project is required to meet Washington State's Water Quality standards, which allow for a temporary mixing zone of suspended sediments during project construction. Typically, projects meeting the USACE's requirements for a CWA Section 404 Nationwide authorization do not require a separate Water Quality Pollution Prevention and Monitoring Plan. However, turbidity and pollution (oil sheen) compliance monitoring points will be established and best management

practices to prevent sediment and pollutants from entering aquatic habitat will be included on the project's TESC and Stormwater Pollution Prevention Plans.

6.9 Post-Permit Application Support and Coordination

After the permit applications have been submitted to the applicable regulatory agencies, Herrera will provide agency coordination and project support until authorizations have been approved. Communication with agency staff will be conducted via phone, email and/or online meetings. Responses to agency staff questions or comments on permit application deliverables will be coordinated with the City prior to submittal.

Assumptions:

- Cultural resources support to complete the cultural resources assessment of the project area and report for NHPA Section 106 consultation will be conducted by others.
- The pre-application meeting will be conducted via teleconference (Microsoft Teams, Zoom, WebEx, or another platform).
- On behalf of the City, Herrera will be the authorized agent for submitting permitting documents to the USACE and WDFW. The City will submit permit documentation to the City's planning department for permit review.
- Information included in the JARPA, figures, and HPA application will be based on robust 30% - 60% design After 60% design, any changes to the design that result in significant differences in impact areas and JARPA revisions that are beyond the scope of post-submittal agency coordination will be completed according to approval as an amendment to the contract.
- Response to comments from regulatory agencies and tribes will not result in notable change to the 30% design or require revisions to supporting documentation.
- The City will be the lead agent for making the SEPA determination. A determination of non-significance (DNS) is anticipated for the SEPA compliance.
- The project will meet the criteria of a Section 404 nationwide permit for USACE authorization. Should an individual permit be required, additional work to meet the USACE's additional requirements for alternatives analysis documentation and public comment reviews is not included in this SOW.
- The project will be designed and scheduled such that an Incidental Harassment Authorization according to the ESA will not be required.
- The project will not require an individual Water Quality Pollution Prevention and Monitoring Plan for Ecology's regulatory review for Section 401 Water Quality Certification.
- All permitting deliverables will undergo QA/QC review by senior consultant team experts prior to delivery.
- The City will pay all environmental permitting fees.

Deliverables

- All draft deliverables will be prepared in electronic file format (MS Word) to allow for tracked changes by project reviewers. Final deliverables will incorporate one consolidated set of review comments/revisions and will be submitted in pdf file format.
- Draft and final pre-application meeting agenda and meeting minutes
- Draft and final JARPA form and site plan figures
- Draft and final ESA compliance documentation
- HPA application information for upload to APPS
- Draft and final City of Lake Stevens Critical Areas Assessment and Mitigation Plan report
- Draft and Final Section 401 Water Quality Certification Notifications

WORK ELEMENT 7 CULTURAL RESOURCES

This work element will be provided by Cultural Resources Consultants

- Background Research: CRC will conduct a search of site files recorded at DAHP; a review of relevant correspondence between the project proponent, stakeholders and DAHP; and a review of pertinent environmental, archaeological, ethnographic, and historical information appropriate to the project area.
- Tribal Contact: CRC will contact the cultural resources staff of tribes that may have an interest in the project area. This communication is intended to inform the cultural resources assessment and does not constitute government-to-government consultation.
- Field Identification: CRC will provide a field investigation of the project for identification of archaeological and historical resources. Investigation will include pedestrian survey and subsurface excavation in amenable environments where proposed ground disturbance may encounter buried archaeological deposits. Methods will be consistent with DAHP guidelines.
- Documentation of Findings: CRC will document and record archaeological and historic sites within the project, including preparation of Washington State archaeological and/or historic site(s) forms. Documentation will be consistent with DAHP standards.
- Cultural Resources Assessment Report: CRC will prepare a cultural resources assessment report describing background research, field methods, results of investigations, and management recommendations. The report will provide supporting documentation of findings, including maps and photographs, and will conform to DAHP reporting standards.

Deliverables:

- One Draft Cultural Resources Assessment Report (with Site Forms, if completed), provided electronically.

- One Final Cultural Resources Assessment Report (with Site Forms, if completed), provided electronically

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Assumptions:

- Up to two rounds of review of the Cultural Resources Assessment report may be required.
- The City will request utility locate services prior to cultural field investigations, in accordance with Washington State Law (RCW 19.122).
- No private utility locates will be required.
- USACE will be the lead agency for Section 106 compliance, therefore no APE will be prepared.
- No more than one unrecorded archaeological site and one unrecorded historic site will be identified within the project.

WORK ELEMENT 8 RIGHT OF WAY ACQUISITION

This Work Element is performed by Commonstreet.

All ROW activities and documentation will comply with the Uniform Relocation Assistance and Real Property Acquisition Policies Act (URA), WSDOT Local Agency Guidelines – Section 25 (Right of Way Procedures), and the CLIENT's WSDOT approved Right of Way Procedures. Full scope of services and assumptions are listed below.

Assumptions:

- The project does not currently have federal aid in any phase, Preliminary Engineering, Right of Way (ROW), or Construction (CN), and WSDOT ROW Certification is not currently required and is not included in this scope.
- All Right of Way activities will be conducted so that the project is eligible for federal funding in the ROW and CN phases.
- The City requires no more than four (4) partial acquisitions from four (4) parcels.
- There are no full acquisitions.
- No design changes will occur after the initial valuation assignment is authorized.
- Legal descriptions suitable for recording and meeting all WSDOT requirements will be provided to Commonstreet from a licensed survey company.
- No occupants or personal property will be displaced requiring relocation services and no relocation services will be required.
- Commonstreet will utilize WSDOT templates and provide to the City for review and approval.
- The City will use ROW Acquisition LPA forms for document templates and approve with no more than one (1) round of review.

- One (1) partial acquisition must be valued by appraisal and is subject to appraisal review to comply with the URA, WSDOT Local Agency Guidelines – Section 25 (Right of Way Procedures), and the City's WSDOT approved Right of Way Procedures.
- Three (3) partial acquisition valuations are non-complex and will not exceed $35,000 including cost to cure damages, making them eligible for Appraisal Waivers.
- The City either has or will notify WSDOT of its intent to utilize the increased Appraisal Waiver Limits of $35,000 pursuant to the "Final Rule" and WSDOT Local Programs implementation memo (Waiver Evaluations Limits Increase & ROW Procedures) dated June 5, 2024.
- If the impacts to parcel make any of the 4 acquisitions ineligible for an Appraisal Waiver an appraisal and appraisal review will be completed. Providing more than a total of 1 Appraisal and appraisal review will require additional scope and fee.
- None of the partial acquisitions impact parcel improvements or result in a loss of parking.
- Title reports will be provided by the City.
- The City will pay directly to the title company all expenses for title commitments, recording fees, escrow services, and title insurance.

SCOPE OF WORK

Task 8.1 – ROW Project Management and Administration

- Prepare for and attend early design development meetings as requested by the City or the project team;
- Provide pre-acquisition services as requested by the City or project team to support early design development;
- Respond to inquiries and needs identified by your team, the City and/or Project Stakeholders;
- Oversight of preliminary ROW activities to comply with WSDOT requirements;
- Provide written and oral status updates on right of way activities;
- Provide oversight to all aspects of the right of way program;
- Review City's approved Right of Way Procedures;
- Develop and execute the Right of Way program in compliance with state law, Uniform Act and WSDOT requirements;
- Provide oversight of ROW activities to comply with WSDOT certification requirements;
- Maintain quality control/quality assurance protocols in the execution of the right of way tasks;
- Coordinate title reviews.

Task 8.2 – Title Review and Conveyance Documents Drafts

- Create state and federal compliant project files for each parcel;
- Request the City order new and/or updates to existing title commitments;
- Review title reports for each parcel and identify each exception;
- Once a parcel's title interest has been reviewed, identify methods of clearance per City direction;
- Provide all documentation required to complete valuations supporting City's Determinations of Value (Just Compensation) and integrate findings into offer packages;
- Draft offer package templates that meet URA, WSDOT, and City ROW Procedure requirements;
- QA/QC offer packages and present for spot check by City Program Administrator and/or WSDOT LAC prior to formally presenting offers to property owners.

Task 8.3 – Appraisal and Appraisal Review Coordination

- Coordinate valuation task and any subconsultants;
- Provide all documentation required to complete valuations including the development of a scope of work, draft Temporary Easements, and development of assumptions to complete 4 appraisal waivers;
- Provide all documentation required to complete valuations including the development of a scope of work, draft Temporary Easements, and development of assumptions to complete 1 appraisal and 1 appraisal review;
- Support City Program Administrator's Determinations of Value and coordinate between appraisal team and Program Administrator;
- Coordinate the development of Determinations of Value and Just Compensation approved by the City as required by the URA, WSDOT, and City ROW Procedure requirements;
- Commonstreet will manage Right of Way Team sub-consultants to prepare the valuations in accordance with the URA, WSDOT, and City ROW Procedure requirements ;
- Commonstreet reserves the right to prepare the appraisal waivers in-house with Right of Way staff.

Task 8.4 - Negotiations, Administrative Settlements, QA/QC

- Review of all valuation and compensation data;
- QA/QC of all documents, tasks, and processes before, during, and after acquisition process;
- Prepare, deliver and present offer packages;
- Negotiate settlements, and draft justification memos when necessary;
- Identify encroachments needed to be cleared or cured to comply with federal and state requirements;
- Additionally, includes support preparing condemnation ordinance(s) if amicable settlements not approved by City.

WORK ELEMENT 9 UTILITY COORDINATION

This element will be performed by DEA. Work involves providing utility coordination with the two franchise utilities that are located on the bridge.

9.1 Meetings with City and Franchise Utilities

This task includes coordinating and accompanying the city for meetings with utilities that are on the bridge. Work also includes communication with utilities after each plan submittal (virtual).

Assumptions:

- The city will take the lead in contacting utilities, determining whether utilities are redundant or need to be kept in service during construction.
- Two in-person meetings, one with each utility, up to one hour each, are included in project scope.
- DEA services are for coordination only, no third-party design is included.

Deliverables:

- Incorporation of utility work requirements in plans and specifications. Any relocation work will be reflected as "by others."

WORK ELEMENT 10 ROADWAY CIVIL DESIGN

This work element is performed by Perteet, Inc. (Perteet) to provide Civil roadway design. This Scope of Services describes the work elements to be accomplished by Perteet for this task

36th Street NE in Lake Stevens crossing over Catherine Creek is a minor collector road, number 2800 on the WSDOT Functional Classification Map. The City of Lake Stevens Table 2-2 Standard Widths Table lists a standard collector pavement width as 36 feet and a reduced width of 32 feet. The city has indicated that the on-street parking in the project vicinity is not needed so the 32-foot street section is preferable. The city has also expressed interest in exploring a deviation to the site distance requirements for sag vertical curve to reduce impacts of fill to walls and driveways. The city would also like to explore a side path section to reduce pollution generating impervious surface. The City would also like to explore improvements to the 36th St NE and Grade Road intersection. Grade Road is a Major Collector and the intersection is currently at skewed at approximately 59 degrees and improvement to closer to 90 degrees would be beneficial. Other than these modifications, the remainder of the design approach follows the 2021 Alternatives Report.

Perteet's services will be limited to those expressly set forth herein. If the service is not specifically identified herein, it is expressly excluded. Perteet will have no other obligations,

duties, or responsibilities associated with the project except as expressly provided in this Agreement.

Transferring Budget within Contract Maximum: The level of effort is specified in the scope of services. The budget may be transferred between discipline subtasks at the discretion of the Consultant, provided that the total contracted amount is not exceeded. The Consultant will have the flexibility to manage budget within a given discipline on a subtask level.

10.1 30% Plans

Perteet will prepare 30% design level construction plans for the civil elements of the project, for City review and comment. The plans will be prepared to a level of competency presently maintained by practicing professionals in the field of transportation engineering in the Puget Sound Region.

The 30% design effort will include the development of the preliminary roadway design; including one horizontal and vertical alignment option, curb, curb and gutter, sidewalk layout or sidepath layout, preliminary driveway profiles, paving sections, layout, channelization, site preparation, erosion control and preliminary 30% opinion of costs.

It is anticipated that the 30% plans provided by Perteet will consist of the following sheets (10 sheets):

- Typical Roadway Sections (2 sheets)
- Preliminary Roadway Plan and Profile (4 sheets)
- Preliminary Driveway Profiles (2 sheets)

The consultant will calculate 30% design level quantities and prepare an opinion of probable construction costs based upon the 30% construction plans and current unit bid prices. A contingency will be included to accommodate additional construction costs not yet specifically identified.

In providing opinions of probable construction cost, the City understands that the Consultant has no control over the cost or availability of labor, equipment or materials, market conditions or the Contractor's method of pricing, and that the Consultant's opinions of probable construction costs are made on the basis of the Consultant's professional judgment and experience. The Consultant makes no warranty, express or implied, that the bids or the negotiated cost of the work will not vary from the Consultant's opinion of probable construction cost.

Assumptions:

- The 30% design concurrence is based on the 2021 alternatives report except as noted under this work element.
- The bid schedule for the opinion of costs will include up to one (1) bid schedule.

- Wall profiles are part of the Consultants services and Perteet will only provide the roadway profile to DEA for their design.
- The City will determine the speed limit for site distance or the elevation above the existing road to set the new roadway profile and Perteet will design only one additional profile option.
- The City will decide if they would like sidewalks, a sidepath, or a different typical section layout and only one option will be developed.

Deliverables:

- Electronic copy of the 30% plan set in PDF format via email or SharePoint
- Electronic copy of the 30% opinion of cost summary submitted in PDF format via email or SharePoint.

10.2 60% Plans, Specifications and Opinion of Cost

Response to 30% Comments

Perteet will attend one (1) virtual comment review meeting with the Consultant and City staff and provide written responses to the City's comments. Responses will be provided on the comment documents provided by the City.

60% Plans

The Consultant will propose and design ADA compliant solutions for each of the identified curb ramps within the project limits. The curb ramp locations will be identified and agreed upon before any curb ramp design work is performed.

The work for this task includes the design and layout for two (2) identified curb ramps. It is anticipated that the location and total number of curb ramps to be designed are as follows:

- Two (2) each at Grade Street

  The Consultant will prepare exhibits (1-in = 10-ft scale) showing proposed improvements for discussion. The purpose of the exhibits is to have a review of the horizontal curb ramps and gain concurrence by the City of the ramp types, locations, and alignment of the curb ramps prior to the final design phase. The Consultant will perform minimal design needed to propose ADA compliant solutions for the curb ramps and approximate the footprint of each non-standard curb ramp.

  The preliminary curb ramp designs will address existing utility impacts as well, and how to avoid them, if possible. Dimensions and details will not be provided at this level. The exhibits will be to scale so that the extent of the impacts can be approximated at the time of review.

It is anticipated that the 60% civil, roadway plans will consist of the following 15 sheets:

- Site Prep/Temporary Erosion and Sediment Control Plans (2 sheets)
- Typical Roadway Sections (2 sheets)
- Roadway Plan and Profile (4 sheets)
- Miscellaneous Roadway and ADA Details (1 sheet)
- Intersection Layout Sheet (1 sheet)
- Driveway Profiles (2 sheets)
- Channelization Plans and Details (3 sheets)

60% Opinion of Cost

The Consultant will calculate 60% level quantities and opinion of construction costs based upon the approved 60% construction plans and current unit bid prices. The Consultant will address applicable 30% review comments and make revisions as necessary.

60% Special Provisions

Perteet will prepare Special Provisions for the civil elements of the 60% design submittal. These will include Special Provisions and GSPs with project specific fill-ins for the items of work that are not covered by the current WSDOT/APWA Standard Specifications. No other portions of a specification package will be included in the 60% submittal.

60% Civil PS&E QA/QC and Constructability Review of Deliverables

An internal quality assurance/quality control review of deliverables will be conducted, as well as confirmation that comments received have been addressed. A record of comments received will be maintained. Response to each comment received will be tracked to confirm that they have been addressed.

Perteet will also perform a preliminary constructability review of the 60% PS&E under this task, including a site visit. This will be done by a member of the Consultant's construction inspection team.

Assumptions:

- It is assumed that the City will provide the Consultant with any City of Lake Stevens General Special Provisions and Requirements to be used on the project.
- It is assumed that the City will provide the Consultant with their standard, current, boilerplate contract language ("front end docs") to be used for the project.

- 30% plan review comments from City staff will be consolidated by the City and conflicting comments will be resolved by City staff prior to transmitting to the Consultant.
- Perteet's responses will be provided to the Consultant on the original comment document the City provided to the Consultant and the Consultant provided to Perteet.
- Perteet will attend one (1) comment review meeting virtually.
- Note that 60% Plans will not include curb return elevations or curb ramp details. These will be provided at 90% level.
- Walls are part of DEA's scope and Perteet will only provide a profile at the edge of proposed roadway for Consultant's design.
- Utility Coordination will be completed by DEA not Perteet.

Deliverables:

- Electronic copy of the 60% plan set in PDF format via e-mail or SharePoint
- Electronic copy of the 60% opinion of cost summary submitted in PDF format via e-mail or Sharepoint
- Electronic copy of the 60% special provisions and applicable GSPs with fill ins for the civil design elements in Microsoft Word format via e-mail or SharePoint

10.3 90% Plans, Specifications, and Opinion of Cost

The Consultant will prepare 90% plans, specifications, and opinion of costs for the construction contract, and incorporate applicable comments received from the City based on the 60% submittal deliverables. The plans, specifications, and opinion of cost will be submitted to the City for review and comment.

Response to 60% Comments

Perteet will attend one (1) virtual comment review meeting with the Consultant and City staff and provide the Consultant with written responses to the City's comments. Responses will be provided on the comment documents provided by the City.

90% Plans

The Plan sheets will be the same as those identified under the 60% design phase.

90% Opinion of Costs

Perteet will calculate 90% level quantities and opinion of construction costs based upon the approved 90% civil construction plans and current unit bid prices. The Consultant will address applicable 60% review comments for civil items and make revisions as necessary.

90% Specifications

Perteet will prepare 90% level specifications for civil items based upon the 90% civil design. Perteet will address applicable 60% review comments and make revisions as necessary. No bid forms or specifications for other work elements will be included at this level.

90% PS&E QA/QC and Constructability Review of Deliverables

An internal Perteet quality assurance/quality control review of civil deliverables will be conducted, as well as confirmation that comments received for this work element have been addressed. A record of civil comments received will be maintained. Response to each comment received will be tracked to confirm that they have been addressed.

Perteet will also perform a preliminary constructability review of the 90% PS&E under this task, including a site visit. This will be done by a member of the Consultant's construction inspection team.

Assumptions:

- 60% plan review comments from City staff will be consolidated by the City and conflicting comments will be resolved by City staff prior to transmitting to the Consultant.
- The Perteet will attend one (1) comment review meeting virtually.

Deliverables:

- Written responses to 60% civil comments (PDF)
- Electronic copy of the 90% plan set in PDF format via e-mail or SharePoint
- Electronic copy of the 90% opinion of cost summary submitted in PDF format via e-mail or Sharepoint

10.4 100% Plans (Ad-Ready), Specifications, and Opinion of Cost

Perteet will revise the 90% plans, specifications, and opinion of cost estimate for the civil elements based on the City's comments and prepare a 100% PS&E package.

Perteet will submit the 100% civil PS&E package, to the Consultant to provide in the overall PS&E package for a 100% check print before assembling the contract documents. 100% comments will be delivered electronically and incorporated into the 100% bid documents. It is assumed that the 90% and 100% review comments will be minor in nature and not reflect any significant changes to design. If there are significant changes to the design or Plans, this would be considered an additional service, and a supplement to the Agreement would be required.

Response to 90% Comments

Perteet will attend one (1) virtual comment review meeting with the Consultant and City staff and provide the Consultant with written responses to the City's comments. Responses will be provided on the comment documents provided by the City.

100% Plans (Ad-Ready)

The Plan sheets will be the same as those identified under the 60% design phase.

100% Opinion of Costs

Perteet will update the project civil quantities and prepare a 100% opinion of construction costs for the civil items based upon the approved 100% construction plans and current unit bid prices. The Consultant will address applicable 90% review comments and make revisions as necessary.

100% Specifications

Perteet will prepare the 100% civil special provisions and GSPs with fill ins based upon the 100% design. The Consultant will address applicable 90% review comments and make revisions as necessary.

Assumptions:

- It is assumed there will be no 100 percent comments. 100 percent plans will be ad-ready.

Deliverables:

- Written responses to 90% comments
- Electronic copy of the final plans; half size and full size signed plans, in PDF format via e-mail or SharePoint
- Electronic copy of the opinion of cost summary submitted in PDF format via electronic e-mail or SharePoint
- Electronic copy of the 100% civil special provisions submitted in PDF format via electronic e-mail or SharePoint
- Bidding support or construction engineering services are excluded.

10.4 Project Management

Perteet will coordinate with the Consultant on a regular basis to keep the project manager informed about this work elements progress. Perteet will participate in project meetings with the Consultant and the City. Perteet will attend one (1) project kickoff meeting with the Consultant and City and up to twenty (20) project status meetings virtually.

In the event that the City has a change in the City's project manager, Perteet will meet with the new project manager and the Consultant, provide a summary of design for this work element and progress, provide a summary of decisions made, and provide past deliverables to date. This effort is included in this task. If changes to completed design efforts and/or Scope of Services are requested due to the change in City's project manager, this will require a supplement to the Agreement.

Perteet will review and comment on the Consultant schedule and up to two (2) updates, manage the budget for this work element, manage change and prepare amendments for this work element, and monitor work progress for this work element.

Deliverables :

- Invoices and Progress Reports (up to 12)

WORK ELEMENT 11 COMMUNITY ENGAGEMENT

11.1 Preparation of Outreach Materials

This element will be performed by DEA. The CONSULTANT will assist the City's communication specialist with digital content for community outreach as requested by the city. Assistance with mailers or other outreach materials such as project goals, schedule and opportunities for the community to provide feedback and engage stakeholders will be provided.

Assumptions :

- The City will take the lead in this activity and handle postage and other material costs.
- Attendance at one public meeting will include one member from the design team and project manager.
- Preparation of materials limited to 8 hours. Additional hours may require a contract amendment.

Deliverables:

- Requested materials

11.2 Public Meeting Attendance

This element will be performed by DEA. The CONSULTANT will attend one public meeting to present the project to stakeholders.

Assumptions:

- Attendance at the meeting will include one member from the design team and the project manager.
- Mileage will be charged at Federal rates.

WORK ELEMENT 12 STORMWATER DESIGN

12.1 30% Plans and Opinion of Cost

The CONSULTANT will prepare 30% design level construction plans and opinion of costs to be incorporated into the 30% P&E set. The CONSULTANT will attend one (1) comment review meeting with the CITY staff and provide the CITY with written responses to the CITY's comments. Responses will be provided on the commented documents provided by the CITY. The plans will be prepared to a level of competency presently maintained by practicing professionals in the field of transportation engineering in the Puget Sound Region.

The 30% design effort will include the development of the preliminary drainage layout, and preliminary 30% opinion of costs.

30% Plans

It is anticipated that the 30% drainage plans will consist of the following sheets:

- Drainage Plan (2 sheets)

30% Opinion of Cost

The Consultant will calculate 30% design level quantities and prepare an opinion of construction costs based upon the 30% construction plans and current unit bid prices. A contingency will be included to accommodate additional construction costs not yet specifically identified.

Preliminary Design and P&E QA/QC of Deliverables

An internal CONSULTANT quality assurance/quality control review of deliverables will be conducted, as well as confirmation that comments received have been addressed. A record of comments received will be maintained. Response to each comment received will be tracked to confirm that they have been addressed.

Assumptions:

- Proposed stormwater improvements will be shown in plan for type size and location. Profiles will not be developed for 30%.

Deliverables:

- 30% design-level plans (half-size [11"x17"], PDF)
- 30% design-level opinion of cost summary (Excel)

12.2 60% Plans and Opinion of Cost

The CONSULTANT will prepare 60% drainage plans and opinion of costs for the construction contract, and incorporate applicable comments received from the CITY based on the 30% submittal deliverables.

Response to 30% Comments

The CONSULTANT will attend one (1) comment review meeting with the CITY staff and provide the CITY with written responses to the CITY's comments. Responses will be provided on the comment documents provided by the CITY.

60% Plans

It is anticipated that the 60% drainage plans will consist of the following sheets (19 sheets):

- Drainage Plan (2 sheets)
- Drainage Profile (1 sheet)
- Drainage Details (2 sheets)

60% Opinion of Cost

The CONSULTANT will calculate 60% level quantities and opinion of construction costs based upon the 60% construction plans and current unit bid prices. The CONSULTANT will address applicable 30% review comments and make revisions as necessary.

60% P&E QA/QC and Constructability Review of Deliverables

An internal DEA quality assurance/quality control review of deliverables will be conducted, as well as confirmation that comments received have been addressed. A record of comments received will be maintained. Response to each comment received will be tracked to confirm that they have been addressed.

The CONSULTANT team will also perform a preliminary constructability review of the 60% Civil P&E under this task. This will be done by a member of the CONSULTANT's construction inspection team.

Assumptions:

- 30% plan review comments from CITY staff will be consolidated by the CITY and conflicting comments will be resolved by CITY staff prior to transmitting to the CONSULTANT.
- The CONSULTANT's responses will be provided on the original comment document the CITY provided to the CONSULTANT.
- The CONSULTANT will attend one (1) comment review meeting held virtually.
- Certain important Special Specifications will be provided at the 60% design-level.

Deliverables:

- Written responses to 30% comments
- 60% design-level plans (half-size [11"x17"], PDF)
- 60% design-level opinion of cost summary (Excel)

12.3 90% Plans, Specifications, and Opinion of Cost

The CONSULTANT will prepare 90% plans, specifications, and opinion of costs for the construction contract, and incorporate applicable comments received from the CITY based on the 60% submittal deliverables.

Response to 60% Comments

The CONSULTANT will attend one (1) comment review meeting with the CITY staff and provide the CITY with written responses to the CITY's comments. Responses will be provided on the comment documents provided by the CITY.

90% Plans

The Plan sheets will be the same as those identified under the 60% design phase.

90% Opinion of Costs

The CONSULTANT will calculate 90% level quantities and opinion of construction costs based upon the 90% construction plans and current unit bid prices. The CONSULTANT will address applicable 60% review comments and make revisions as necessary.

90% Specifications

The CONSULTANT will prepare 90% level specifications based upon the 90% design using the WSDOT PSE Program (run-list with individual specifications files).

90% PS&E QA/QC Review of Deliverables

An internal CONSULTANT quality assurance/quality control review of deliverables will be conducted, as well as confirmation that comments received have been addressed. A record of comments received will be maintained. Response to each comment received will be tracked to confirm that they have been addressed.

Assumptions:

- 60% plan review comments from CITY staff will be consolidated by the CITY and conflicting comments will be resolved by CITY staff prior to transmitting to the CONSULTANT.
- The CONSULTANT will attend one (1) comment review meeting held virtually.

Deliverables:

- Written responses to 60% comments
- 90% design-level plans (half-size [11"x17"], PDF)
- 90% design-level opinion of cost summary (Excel)
- 90% design-level specifications (run-list and individual specifications files, Word)

12.4 100% Plans, Specifications, and Opinion of Cost (Ad-Ready)

The CONSULTANT will revise the 90% plans, specifications, and opinion of cost estimate based on the CITY's comments and prepare a 100% PS&E package.

90% comments will be delivered electronically and incorporated into the 100% (Ad-Ready) PS&E set. It is assumed that the 90% review comments will be minor in nature and not reflect any significant changes to design. If there are significant changes to the design or Plans, this would be considered an additional service, and a supplement to the Agreement would be required.

Response to 90% Comments

The CONSULTANT will attend one (1) comment review meeting and the CITY staff and provide the CITY with written responses to the CITY's comments. Responses will be provided on the commented documents provided by the CITY.

100% Plans (Ad-Ready)

The Plan sheets will be the same as those identified under the 60% design phase.

100% Opinion of Costs

The CONSULTANT will update the project quantities and prepare a 100% opinion of construction costs based upon the 100% construction plans and current unit bid prices. The CONSULTANT will address applicable 90% review comments and make revisions as necessary.

100% Specifications

The CONSULTANT will prepare the 100% Specifications based upon the 100% design. The CONSULTANT will address applicable 90% review comments and make revisions as necessary. The fee effort for this task includes a review of the 2027 Standard Specifications for changes from the 2026 Standard Specifications

100% PS&E QA/QC Review of Deliverables

An internal CONSULTANT quality assurance/quality control review of deliverables will be conducted, as well as confirmation that comments received have been addressed. A record of comments received will be maintained. Response to each comment received will be tracked to confirm that they have been addressed.

Assumptions:

- It is assumed that the 90% review comments will be minor in nature and not reflect any significant changes to design.
- The CONSULTANT will attend one (1) comment review meeting held virtually.
- It is assumed there will be no 100 percent comments. 100 percent plans will be ad-ready.

Deliverables:

- Written responses to 90% comments
- 100% design-level plans (half-size [11”x17”], PDF)
- 100% design-level opinion of cost summary (Excel)
- 100% design-level specifications (run-list and individual specifications files, Word)

12.4 Stormwater Report

The CONSULTANT (DEA) shall prepare a Draft and Final Stormwater Report based upon the proposed facilities for the corridor that includes the following elements:

Project overview

- General description of project
- Existing soils type(s)

Existing conditions summary

- Review existing site conditions
- Identify site limitations

Off-site analysis (upstream and downstream)

- Study area definition
- Review of available information
- Field Inspection

Minimum requirements

- Address 9 minimum requirements outlined by the State of Washington Department of Ecology(DOE) Stormwater Management Manual for Western Washington (SWMMWW

Permanent Stormwater Control Plan

- Existing Site Hydrology
- Developed Site Hydrology
- Performance Standards and Goals
- Sizing of BMPs to meet the applicable Minimum Requirements
- Conveyance System Analysis and Design, including downstream analysis ¼ mile past project limits

Construction Stormwater Pollution Prevention Plan

- Evaluation of 13 elements outlined by DOE SWMMWW

Special Reports and Studies

- Reference other studies prepared for project (geotechnical report, critical area study, etc.)

Operations and maintenance

- Standard procedures for maintaining proposed stormwater features.

Exhibits will be used within the Stormwater Report to convey the existing conditions and design approach proposed for the PROJECT. The following specific items, or combination of items, will be added as an exhibit or exhibits to the appropriate sections of the Stormwater Report:

- Existing/proposed conditions
- Threshold discharge areas
- Off-site flow onto/through the project limits
- Downstream analysis for ¼ mile downstream
- Critical areas

Assumptions:

- The 2024 DOE Stormwater Manual for Western WA will be utilized for this project.
- One site visit will be required to locate proposed facilities.
- Low impact stormwater design concepts will be incorporated into the drainage design where practical.
- The drainage design will be incorporated into the Final Design element.
- The CITY will provide one set of consolidated comments for each draft submittal of the Stormwater Report.

Deliverables:

- Draft Stormwater Report (PDF Electronic file). Submitted with 30% design.
- Final Draft Stormwater Report (PDF Electronic file). Submitted with 60% design.
- Comment responses from 30% submittal

WORK ELEMENT 13 STRUCTURAL DESIGN

This work element is performed by DEA to provide structural design services. The structural design shall be per current WSDOT and AASHTO LRFD standards. WSDOT design standards shall control over AASHTO.

Our objective is to design a safe and optimized bridge structure subject to triple bottom-line attributes. The structure will improve conveyance at the crossing and minimize structural elements in the floodplain. We will utilize our knowledge obtained from the 2021 Alternative Study for a streamlined 30% design phase. The proposed bridge design will satisfy WDFW guidelines for

habitat for fish and wildlife and provide an improved hydraulic opening. Leveraging our experience with similar crossings over fish-bearing waterways from 50 to 120-foot spans, we will optimize structures for streamlined permitting efforts, cost, traffic control, and access during construction. We will work in close conjunction with the City team throughout the design process to provide for the desired attributes are incorporated in our design. Then, we will efficiently advance the selected design to facilitate permit applications. The design will be per the most current AASHTO LRFD Bridge Design Specifications (currently at 10th Edition), 2024 WSDOT Bridge Design Manual, and AASHTO Seismic Guide Specifications (3rd Edition). Practical aspects of Accelerated Bridge Construction (ABC) will be given special attention for a quick construction phase that provides a low maintenance bridge over its design life of 100 years.

The concept presented in the Alternative Study Report was driven by the need to meet the minimum 30-foot horizontal clearance requirements for fish passage, improve the vertical free board space between the 100-year water surface elevation and the bottom soffit of the bridge girders, and the desire to raise the roadway profile by 10 feet to improve site distance for 36th St NE. We understand that the City is interested in raising the roadway less than the originally proposed 10 feet. While this would require a deviation from the requirements of the WSDOT Design Manual and the AASHTO Geometric Design of Highways and Streets, it would reduce project costs by reducing the span length of the bridge and lower its required approach walls, while still retaining adequate hydraulic opening. Additionally, it would mitigate or potentially remove some of the ROW easement needs. The city has also expressed interest in re-evaluating bridge-types. This evaluation has been added to the 30 percent design.

This work element includes the following tasks:

13.1 30% P&E and Bridge Type Evaluation

This task encompasses the activities associated with the preparation of the 30% Plans and Engineer's opinion of construction cost Estimate (P&E) documents. Prior to starting design of the bridge, the Consultant will work with city staff to identify up to three bridge types in addition to those within the earlier-referenced Alternatives Study. This includes establishing a matrix of priorities as identified by the city and ranking the alternatives by those priorities to establish a preferred alternative.

Assumptions:

- The budget outlined for this task is approximately 30 percent of the total budget outlined for structural design. The remaining budget (approximately $250,000), outlined for the 60-100 percent PS&E, shall be considered a Management Reserve to be used by the city at their discretion to complete the design of the bridge and any other desired services.
- No design work shall be performed until the city provides written authorization as to the type of structure and the cost for the remaining bid-ready PS&E.

Deliverables:

- Bridge type alternatives memo.
- 30% design-level plans (half-size [11x17], PDF).
- 30% design-level opinion of cost Summary (Excel).

13.2 60% PS&E

This work element item encompasses the activities associated with the preparation of the 60% Plans and engineer's opinion of construction cost Estimate (P&E) documents. Preliminary specification manual will be prepared in this task as well. Constructability Review and QA/QC activities are an inherent part of this element.

Assumptions:

- The Preliminary specification manual includes the General Special Provisions. The need for certain project-specific Special Provisions will be identified.

Deliverables:

- Written responses to 30% comments.
- 60% design-level plans (half-size [11x17], PDF)
- 60% design-level opinion of cost summary (Excel)
- Preliminary Specification Manual (Word)

13.3 90% PS&E

This task encompasses the activities associated with the preparation of the 90% Plans, Special Provisions and engineer's opinion of construction cost Estimate (PS&E). Constructability Review and QA/QC activities are an inherent part of this element.

Deliverables:

- Two 11x17 (half size) copies of Plans
- Two copies of the 90% Specifications Manual
- Two copies of the quantity Estimates and opinion of construction cost.

13.4 100% Plans, Specifications & Estimate (PS&E) – Ad-Ready

This task encompasses the activities associated with the preparation of the 90% Plans, Special Provisions and engineer's opinion of construction cost Estimate (PS&E). Constructability Review and QA/QC activities are an inherent part of this element.

Assumptions:

- It is assumed that the 90% review comments will be minor in nature and not reflect any significant changes to design.
- The CONSULTANT will attend one (1) comment review meeting held virtually.
- It is assumed there will be no 100 percent comments. 100 percent plans will be ad-ready.

Deliverables:

- Written responses to 90% comments.
- 100% design-level plans (half-size [11x17], PDF)
- 100% Specifications Manual (Word)
- 100% quantity Estimates and opinion of construction cost (Excel).

WORK ELEMENT 14 QAQC, CONSTRUCTABILITY REVIEW, CONSTRUCTION SCHEDULE

This work element is performed by DEA, to provide constructability review, construction schedule, and construction estimation services.

The work element includes the following activities:

14.1 Constructability review

DEA will provide constructability review of the design team's prepared Plans, Estimate, and Specification (PS&E) package at the 90% design level.

14.2 Construction CPM Schedule

DEA will prepare Construction Schedule at the 100% PS&E design level.

14.3 Construction Estimation

DEA will provide construction estimation cost of the design team's prepared PS&E package at 60%, 90% and 100% levels.

Deliverables:

- Constructability Review comments for PS&E packages at 60% and 90% design levels.
- Construction schedule at 60% and 100% levels.
- Construction estimation for PS&E packages at 60%, 90%, & 100% design levels.

WORK ELEMENT 15 OPTIONAL CONSTRUCTION PHASE SUPPORT

In this work element and at the discretion of the City, construction phase services may be added to this contract. The following presents the envisioned tasks associated with this work element that could be added by supplement.

15.1 Prebid Engineering Support

In this work element the design team will provide bid support services that encompass activities like addressing a reasonable number of bidder's inquiries. For the purposes of this scope of work, "reasonable" is defined as twenty (20) Request for Information and Clarifications for bidding purposes and will assist the City on up to two as-needed bid Addendum packages.

15.2 Engineering Support During Construction

In this task, CONSULTANT will provide on-call engineering support services to the City during the construction period of the Project. This task encompasses review of and responses to Contractor RFIs; Submittals during the construction phase and preparation of As-built drawings and inventory load rating of the new bridge.

Deliverables:

- As-built drawings
- Load Rating Analysis and Summary

15.3 Construction Management Services

David Evans and Associates, Inc.'s team possess a highly experienced and qualified CM team. In case the City desires, David Evans and Associates, Inc. staff can augment City's team to provide CM services for this project. For the purpose of this estimate **90 working days** is assumed. The following are the categorized activities associated with this Task:

- **15.3** ; Project Management - Construction project management which includes management of scope, schedule, budget (monthly invoicing).
- **15.4** Resident Engineering – The CONSULTANT will Provide ½ -time Resident Engineer (RE) for management of construction activities including oversight of contractors and subcontractors, quality control, weekly meetings, safety compliance, and managing project changes,.
- **15.5** Site Inspection – The CONSULTANT will provide one full-time senior inspector (except when City Inspector is on team) to track quantities, daily inspection reports, etc.;
- **15.6** Documentation Control – The CONSULTANT will provide ¾ time office engineer to manage contract documentation consistent with the federal requirements. This includes ROM maintenance, submittal logs, RFIs, serial letters, etc.
- **15.7** The CONSULTANT will provide material sampling and testing consistent with LAG Manual Ch 52 requirements.

The following table presents the anticipated Plan sheets for the Catherine Creek Bridge Replacement:

Plan Sheet Summary Table Sheet Name	PS&E Assumed Number of Sheets	PS&E Submittal Phase		
		30%	60%	90% & 100%
Cover Sheet	1	X	X	X
Index Legend and Abbreviations	2		X	X
Structural Demo Plans	1		X	X
Site Prep and TESC	2		X	X
Roadway Plan & Profile	4	X	X	X
Channelization Plans	3	X (2)	X (3)	X (3)
Roadway Typical Sections and Details	2	X	X	X
Driveway Profiles	2	X	X	X
Miscellaneous Roadway and ADA Details	1		X	X
Intersection Layout Sheet	1		X	X
ROW Plan	1		X	X
Drainage Sheets	2		X	X
Construction Detour Plan	3	X	X	X
Roadside Restoration	2		X	X
Bridge Plan & Elevation	1	X	X	X
General Notes	1		X	X
Bridge Construction Sequencing	2	X	X	X
Temporary Shoring	1	X	X	X
Bridge Foundation Layout	1	X	X	X
Shaft Details – Pier 1 and 2	2		X	X
Pier 1 Layout (Plan & Elevation)	1	X	X	X
Pier 1 Details	1		X	X
Pier 2 Layout (Plan & Elevation)	1	X	X	X
Pier 2 Details	1		X	X
Framing Plan	1		X	X
Bridge Typical Sections	1	X	X	X
Girder Details	4		X	X
Diaphragms Details	1		X	X
Deck Reinforcing	2		X	X
Bearing & Expansion Joint Details	1		X	X
Bridge Drainage Details	1		X	X
Utility Support Details	1		X	X
Bridge Barrier Details	3		X	X
Bridge Railing Details	1		X	X
Bridge Approach Slabs	1		X	X
Retaining Wall Layouts	2	X	X	X
Retaining Wall Details	2		X	X
Bar Bending Sheets	2			X
Guardrail	1		X	X
Perm. Signage and Attachments	1		X	X
Stream and Floodway Grading Plan	1	X	X	X
Site Prep and TESC for Stream/Flood areas	1	X	X	X
Fish Bypass and Fish Exclusion Plan	1	X	X	X

Plan Sheet Summary Table Sheet Name	PS&E Assumed Number of Sheets	PS&E Submittal Phase		
		30%	60%	90% & 100%
Flow Bypass and Fish Exclusion Details	1		X	X
Restoration Planting	1	X	X	X
Stream Plan and Profile	1	X	X	X
Stream Sections	1	X	X	X
Stream Details	1	X	X	X
Restoration Plan 1 (Upstream)	1	X	X	X
Restoration Plan 2 (Downstream)	1	X	X	X
Restoration/ Planting Details	1			X
Restoration / Planting Notes and Plant Schedule	1			X

Catherine Creek Bridge Replacement **5/1/2025**

Task Code	Description	DEA	Perteet	Herrera Environmental	Commonstreet Consulting	GeoSyntec	Cultural Resources Consultants	Total
1.0	Project Management	$ 93,279.03	$ -		$ -	$ -	$ -	$ 93,279.03
2.0	Data Gap Analysis (Herrera)		$ -	$ 35,193.04	$ -	$ -	$ -	$ 35,193.04
3.0	Surveying	$ 10,808.67	$ -	$ -	$ -	$ -	$ -	$ 10,808.67
4.0	GeoTechnical (Geosyntec)	$ -	$ -	$ -	$ -	$ 19,991.00	$ -	$ 19,991.00
5.0	Channel Assessment and Design (Herrera)	$ -	$ -	$ 147,859.34	$ -	$ -	$ -	$ 147,859.34
6.0	Environmental Permitting (Herrera)	$ -	$ -	$ 45,411.53	$ -	$ -	$ -	$ 45,411.53
7.0	Cultural Resources (CRC)	$ -	$ -	$ -	$ -	$ -	$ 5,492.92	$ 5,492.92
8.0	Right of Way Acquisition (Commonstreet)	$ -	$ -	$ -	$ 58,866.65	$ -	$ -	$ 58,866.65
9.0	Utility Coordination	$ 6,400.66	$ -	$ -	$ -	$ -	$ -	$ 6,400.66
10.0	Roadway Civil Design (Perteet)	$ -	$ 237,317.11	$ -	$ -	$ -	$ -	$ 237,317.11
11.0	Community Engagement	$ 4,408.74	$ -	$ -	$ -	$ -	$ -	$ 4,408.74
12.0	Stormwater Design	$ 67,209.42	$ -	$ -	$ -	$ -	$ -	$ 67,209.42
13.0	Structural Design	$ 367,016.03	$ -	$ -	$ -	$ -	$ -	$ 367,016.03
14.0	QAQC, Constructability Review & Schedule	$ 21,817.33	$ -	$ -	$ -	$ -	$ -	$ 21,817.33
15.0	Construction Phase Support	$ -	$ -	$ -		$ -	$ -	$ -
		$ 570,939.89	$ 237,317.11	$ 228,463.91	$ 58,866.65	$ 19,991.00	$ 5,492.92	$ 1,121,071.48

Catherine Creek Bridge Replacement

Task Code	Description	DEA	Perteet	Herrera Environmental	Commonstreet Consulting	GeoSyntec	Cultural Resources Consultants	Total
1.0	Project Management	442.0	0.0	0.0	0.0	0.0	0.0	**442.0**
2.0	Data Gap Analysis (Herrera)	0.0	0.0	170.0	0.0	0.0	0.0	**170.0**
3.0	Surveying	66.0	0.0	0.0	0.0	0.0	0.0	**66.0**
4.0	GeoTechnical (Geosyntec)	0.0	0.0	0.0	0.0	85.0	0.0	**85.0**
5.0	Channel Assessment and Design (Herrera)	0.0	0.0	778.0	0.0	0.0	0.0	**778.0**
6.0	Environmental Permitting (Herrera)	0.0	0.0	253.0	0.0	0.0	0.0	**253.0**
7.0	Cultural Resources (CRC)	0.0	0.0	0.0	0.0	0.0	62.0	**62.0**
8.0	Right of Way Acquisition (Commonstreet)	0.0	0.0	0.0	344.0	0.0	0.0	**344.0**
9.0	Utility Coordination	26.0	0.0	0.0	0.0	0.0	0.0	**26.0**
10.0	Roadway Civil Design (Perteet)	0.0	1063.0	0.0	0.0	0.0	0.0	**1063.0**
11.0	Community Engagement	16.0	0.0	0.0	0.0	0.0	0.0	**16.0**
12.0	Stormwater Design	356.0	0.0	0.0	0.0	0.0	0.0	**356.0**
13.0	Structural Design	1692.0	0.0	0.0	0.0	0.0	0.0	**1692.0**
14.0	QAQC, Constructability Review & Schedule	102.0	0.0	0.0	0.0	0.0	0.0	**102.0**
15.0	Construction Phase Support	0.0	0.0	0.0	0.0	0.0	0.0	**0.0**
		2700.0	**1063.0**	**1201.0**	**344.0**	**85.0**	**62.0**	**5455.0**

Catherine Creek Bridge Replacement — **David Evans & Associates, Inc.**

Task Code	Sub Task	Description																													Total Staff Hours (ST)	Total Cost	Task %
																David Evans and Associates																	
													PJM4	ENG5	DES3	DES1	"CAD"	PJM3	ENG6	ENG5	DES1	DES5	CDL3	SVM1	OST3	PCH3	FST4	ODCs			
			$96.69	$124.42	$351.89	$367.19	$310.15	$275.39	$198.89	$168.29	$168.29	$128.52	$176.71	$256.17	$233.47	$171.35	$116.28	$209.60	$237.94	$299.01	$205.01	$116.28	$200.42	260.09	201.95	149.94	153.00	113.22	$1.00			
1.0	**Project Management**																																
	1.1	Kickoff Meeting	2.0		2.0	2.0		2.0	2.0					16.0	2.0	2.0	2.0	2.0	2.0	2.0		2.0	2.0	2.0							44.0	$ 10,367.80	2%
	1.2	Bi-Weekly meetings with City (Virtual)	22.0											60.0					22.0												104.0	$ 22,732.36	4%
	1.3	Invoicing and Monthly Reports	40.0	40.0										40.0																	120.0	$ 19,091.33	4%
	1.4	Coordination with Perteet for Stormwater												10.0	10.0																20.0	$ 4,896.45	1%
	1.5	Bi-Weekly Meetings with Design Team 5/25-3/26	13.0					13.0	13.0					24.0	13.0				13.0												89.0	$ 19,699.21	3%
	1.6	Design Team Management 5 subs, 1/2 hr/mo												35.0																	35.0	$ 8,966.12	1%
	1.7	Schedule creation and maintenance												20.0																	20.0	$ 5,123.50	1%
	1.8	Communications Plan	1.0											4.0																	5.0	$ 1,121.39	0%
	1.9	QAQC Coordination 30-60-90												5.0																	5.0	$ 1,280.87	0%
																															442.0	**$ 93,279.03**	**16%**
3.0	**Surveying**																																
	3.1	Verify Existing Wilson Survey-including field work to confirm ROW																						2.0	4.0	2.0	8.0	8.0		24.0	$ 3,757.56	1%
	3.2	1 day field map Herrera additional data																								4.0	9.0	9.0		22.0	$ 2,995.64	1%
	3.3	Temp const easement-2																						4.0	8.0	8.0				20.0	$ 3,855.47	1%
		Mileage																											200.0	0.0	$ 200.00	0%
																														0.0	$ -	0%
																														66.0	**$ 10,808.67**	**2%**
9.0	**Utility Coordination**																																
	9.1	Meetings with City and Franchise Utilities												2.0					24.0										177.8	26.0	$ 6,400.66	1%
	9.9																													0.0	$ -	0%
																														26.0	**$ 6,400.66**	**1%**
11.0	**Community Engagement**																																
																														0.0	$ -	0%
	11.1	Preparation of Materials at City's Request																					4.0							4.0	$ 801.69	0%
	11.2	Attendance at one Public Meeting 63.5 mi				4.0								8.0															88.9	12.0	$ 3,607.05	0%
																														0.0	$ -	0%
																														16.0	**$ 4,408.74**	**1%**
12.0	**Stormwater Design**																																
	12.1	30% Plans and Estimate												1.0	10.0	15.0	10.0	3.0													39.0	$ 6,952.77	
	12.2	60% Plans and Estimate												1.0	10.0	30.0	15.0	5.0													61.0	$ 10,523.67	
		60% Specifications												8.0	4.0																12.0	$ 2,983.28	
	12.3	90% Plans and Estimate												1.0	10.0	30.0	15.0	5.0													61.0	$ 10,523.67	
		90% Specifications												8.0	4.0																12.0	$ 2,983.28	
	12.4	100% Plans and Estimate												1.0	10.0	20.0	10.0	2.0													43.0	$ 7,599.93	
		100% Specifications												4.0	1.0																5.0	$ 1,258.17	
	12.6	Draft Stormwater Report (Submitted with 30% Design)													25.0	25.0	4.0	1.0		2.0											57.0	$ 11,393.35	
	12.7	Final Draft Stormwater Report (Submitted with 60% Design)													15.0	20.0	4.0	1.0		2.0											42.0	$ 8,201.88	
	12.8	Final Stormwater Report (Submitted with 100% Design)													10.0	10.0	2.0	1.0		1.0											24.0	$ 4,789.42	
																														356.0	**$ 67,209.42**	**13%**
13.0	**Structural Design**																																
	13.1	30% P&E				32.0	24.0	160.0	60.0	30.0	35.0	35.0	160.0																		536.0	$ 118,900.49	
	13.2	60% PS&E				32.0	24.0	120.0	40.0	25.0	25.0	30.0	120.0																		416.0	$ 93,671.62	
	13.3	90% PS&E				32.0	24.0	120.0	40.0	25.0	25.0	30.0	120.0																		416.0	$ 93,671.62	
	13.4	100% PS&E				16.0	8.0	80.0	20.0	25.0	25.0	30.0	80.0																		324.0	$ 60,772.31	
																																$ -	
																														1692.0	**$ 367,016.03**	**63%**
14.0	**QAQC, Constructability Review & Schedule**																																
	14.1	90 Percent Constructability			8.0																										8.0	$ 2,815.11	
	14.2	100% Percent CMP Schedule			8.0																										8.0	$ 2,815.11	
	14.3	60, 90, and 100 Percent Cost Estimation			2.0				10.0	15.0	15.0	10.0																			52.0	$ 9,026.71	
	14.4	QAQC Processing																	8.0		10.0		16.0								34.0	$ 7,160.41	
																														102.0	**$ 21,817.33**	
15.0	**Construction Phase Support**																																
	15.1	Prebid Engineering Support																													0.0	$ -	
Optional Services	15.2	Engineering Support During Construction																													0.0	$ -	
	15.3.1	Project Management																													0.0	$ -	
	15.3.2	Resident Engineering																													0.0	$ -	
	15.3.3	Site Inspection																													0.0	$ -	
	15.3.4	Documentation Control																													0.0	$ -	
	15.3.5	Materials Sampling and Testing																													0.0	$ -	
	15.3.6	Other Direct Costs (Mileage)																													0.0	$ -	
																															0.0	$ -	
																														0.0	**$ -**	**0%**
		TOTAL LABOR HOURS	78.0	40.0	20.0	118.0	80.0	495.0	185.0	120.0	125.0	135.0	480.0	248.0	124.0	152.0	62.0	20.0	69.0	7.0	10.0	2.0	22.0	8.0	12.0	14.0	17.0	17.0		**2700.0**		
		TOTAL LABOR COST	$7,542	$4,977	$7,038	$43,328	$24,812	$136,319	$36,795	$20,195	$21,037	$17,350	$84,820	$63,531	$28,950	$26,046	$7,209	$4,192	$16,418	$2,093	$2,050	$233	$4,409	$2,081	$2,423	$2,099	$2,601	$1,925	$467	**$570,940**	**$ 570,939.89**	check

Task Code	Sub Task	Description	Perteet									Total Staff Hours *(ST)*	Total Cost	Task %
			Director	Engineer III	Senior Engineer/ Manager	Accountant	Construction Supervisor	Senior Associate	Civil Designer II	Lead Tech/ Designer	ODCs			
			$356.85	*$215.14*	*$286.07*	*$199.66*	*$297.13*	*$303.48*	*$164.24*	*$195.02*	*$1.00*			
												0.0	**$ -**	**0%**
10.0	**Roadway Civil Design (Perteet)**													
	10.1	30% profile layout/options	2.0	32.0	8.0				14.0	8.0	140.0	64.0	$ 13,886.11	6%
	10.2	30% Plans	8.0	50.0	20.0				40.0	60.0		178.0	$ 37,603.76	17%
	10.3	30% Opinion of Cost	4.0	16.0	4.0				8.0			32.0	$ 7,327.76	3%
	10.4	30% Grade Road Intersection Improvement Plan	8.0	40.0	4.0				24.0	16.0		92.0	$ 19,666.57	9%
	10.5	60% Plans	8.0	80.0	24.0				120.0	40.0	140.0	272.0	$ 54,580.90	26%
	10.6	60% Opinion of Cost	2.0	6.0	4.0				6.0			18.0	$ 4,134.23	2%
	10.7	60% Specifications	8.0	4.0	2.0				2.0			16.0	$ 4,615.96	2%
	10.8	60% QA/QC and Constructability Review					8.0	6.0			50.0	14.0	$ 4,247.92	1%
	10.9	90% Plans	4.0	40.0	24.0				40.0	40.0		148.0	$ 31,268.89	14%
	10.10	90% Opinion of cost	2.0	4.0	4.0				4.0			14.0	$ 3,375.48	1%
	10.11	90% Specifications	4.0	2.0								6.0	$ 1,857.67	1%
	10.12	90% QA/QC and Constructability Review					8.0	6.0			50.0	14.0	$ 4,247.92	1%
	10.13	100% Plans	2.0	32.0					24.0	32.0		90.0	$ 17,780.43	8%
	10.14	100% Opinion of cost	2.0	2.0	2.0				2.0			8.0	$ 2,044.59	1%
	10.15	100% Specifications	4.0	2.0								6.0	$ 1,857.67	1%
	10.16	100% QA/QC and Constructability Review					4.0	3.0			50.0	7.0	$ 2,148.96	1%
	10.17	Project Management	60.0	8.0	4.0	12.0						84.0	$ 26,672.28	8%
												1063.0	**$ 237,317.11**	**100%**
		TOTAL LABOR HOURS	118.0	318.0	100.0	12.0	20.0	15.0	284.0	196.0		**1063.0**		
		TOTAL LABOR COST	$42,108	$68,413	$28,607	$2,396	$5,943	$4,552	$46,644	$38,224	$430	**$237,317**		

Task Code	Sub Task	Description	Herrera Environmental Consultants																Total Staff Hours (ST)	Total Cost	Task %
			LABC1 Projct Engineeer V	LABC2 Project Manager IV	LABC3 Engineer II	LABC4 Project Prinicipal - Engineer IV	LABC5 Project Accountant II	LABC6 Scientist III	LABC7 GIS Analyst II	LABC8 CAD Tech/Designer V	LABC9 Scientist II	LABC10 Administrative Coordinator	LABC11 Engineer I	LABC12 Engineer IV	LABC13 Landscape Designer 2	LABC14 Landscape Architect IV	LABC15 Scientist VI	ODCs			
			$272.25	*$230.84*	*$161.81*	*$305.33*	*$148.66*	*$154.17*	*$114.75*	*$189.17*	*$126.02*	*$147.42*	*$127.08*	*$210.84*	*$136.88*	*$254.78*	*$269.61*	*$1.00*			
2.1	**Project Management**																				
	1.0	Invoicing, Progresss Reports, Internatl Team meetings and client coordination for 12 months - April 1, 2025 - March 31, 2026	14.0	67.0	14.0	0.0	18.0	2.0	0.0	0.0	0.0	0.0	0.0	0.0	0.0		0.0		115.0	$ 24,527.34	10%
		Escalation on Labor 2026																	0.0	$ 307.00	0%
																			0.0	$ -	0%
																			115.0	**$ 24,834.34**	**10%**
2.2	**Data Gap Analysis**																				
	2.0		11.0	10.0	17.0				8.0	4.0	5.0		0.0						55.0	$ 10,358.70	5%
	2.9																		0.0	$ -	0%
																			55.0	**$ 10,358.70**	**5%**
5.0	**Task 5 Name**																				
	5.1	**SHR2 Modeling Scour Analysis**	36.0		94.0	4.0			8.0	16.0		6.0	42.0	8.0	4.0				218.0	$ 38,633.30	18%
	5.2	Restoration Design	94.0	32.0	156.0	16.0			0.0	136.0		8.0	53.0		46.0	19.0			560.0	$ 107,885.04	47%
		Escalation on Labor 2026																	0.0	$ 748.00	0%
																			0.0	$ -	0%
		ODC																435.0	0.0	$ 435.00	0%
		Mileage																158.0	0.0	$ 158.00	0%
																			0.0	$ -	0%
																			778.0	**$ 147,859.34**	**65%**
6.0	**Task 6 Name**																				
	6.1	Environmental Permitting	10.0	61.0	2.0	2.0		30.0	21.0	44.0	63.0	12.0				0.0	8.0		253.0	$ 44,961.53	21%
		Escalation on Labor 2026																	0.0	$ 450.00	0%
																			0.0	$ -	0%
																			253.0	**$ 45,411.53**	**21%**
		TOTAL LABOR HOURS	165.0	170.0	283.0	22.0	18.0	32.0	37.0	200.0	68.0	26.0	95.0	8.0	50.0	19.0	8.0	593.0	**1201.0**	**$228,464**	
		TOTAL LABOR COST	$44,921	$39,243	$45,792	$6,717	$2,676	$4,933	$4,246	$37,834	$8,569	$3,833	$12,073	$1,687	$6,844	$4,841	$2,157	$2,098	**Check**	228463.9	

Task Code	Sub Task	Description	Commonstreet Consulting									Total Staff Hours *(ST)*	Total Cost	Task %
			PIC	Sr PM	PM	Sr ROW Agent	ROW Agent	Sr Project Control Specialist	Project Control Specialist	LABC8	ODCs			
			$301.99	*$234.61*	*$204.66*	*$192.18*	*$117.30*	*$159.73*	*$119.80*	*$0.00*	*$1.00*			
8.0	**Right of Way Acquisition (Commonstreet)**													
	8.1	ROW Project Management and Administration	4.0	45.0	1.0			1.0	10.0			61.0	$ 13,327.80	27%
	8.2	Title Review and Conveyance Documents Drafts							18.0			18.0	$ 2,156.40	4%
	8.3	Appraisal and Appraisa Review Coordination		5.0								5.0	$ 1,173.05	2%
	8.4	Negotiations, Administrative Settlements, and QA/QC				30.0	190.0					220.0	$ 28,052.40	57%
	8.5	Project and File Close-out							40.0			40.0	$ 4,792.00	8%
	8.6	Project Certification											$ -	
											Subtotal	**344.0**	**$ 49,501.65**	
												Expenses	$ 440.00	
													$ 325.00	
													$ 6,600.00	
													$ 2,000.00	
											Subtotal		**$ 9,365.00**	
												0.0	**$ 58,866.65**	
		TOTAL LABOR HOURS	4.0	50.0	1.0	30.0	190.0	1.0	68.0	0.0		**344.0**	**check**	100%
		TOTAL LABOR COST	$1,208	$11,731	$205	$5,765	$22,287	$160	$8,146	$0	$0		$58,867	

Task Code	Sub Task	Description	GeoSyntec							Total Staff Hours *(ST)*	Total Cost	Task %
			Senior Principal	Project Professional	Senior Staff Professional	Senior Designer	Senior Technician	LABC6	ODCs			
			$330.00	*$254.00*	*$200.00*	*$215.00*	*$125.00*	*$0.00*	*$1.00*			
										0.0	**$ -**	**0%**
4.0	**GeoTechnical (Geosyntec)**											
	4.1	Kickoff, review 2020 TS&L report, discuss final concepts	2.0	2.0	2.0					6.0	$ 1,568.00	7%
	4.2	Collaborate with DEA on bridge foundations	1.0	4.0	6.0					11.0	$ 2,546.00	13%
	4.3	Collaborate with DEA on wingwalls	1.0	2.0	4.0					7.0	$ 1,638.00	8%
	4.4	Collaborate with DEA on stormwater management	1.0	4.0	2.0					7.0	$ 1,746.00	8%
	4.5	Provide input to geotechnical-related elements of PS&E	4.0	8.0	4.0					16.0	$ 4,152.00	19%
	4.6	Prepare and submit Geotechincal Enginering Addendum Report in support of final design	2.0	8.0	12.0	3.0	4.0			29.0	$ 6,237.00	34%
	4.7	Project Management and Contract Administration	1.0	6.0			2.0			9.0	$ 2,104.00	11%
	4.8	0								0.0	$ -	0%
	4.9	0								0.0	$ -	0%
										85.0	**$ 19,991.00**	**100%**
										0.0	**$ -**	**0%**
		TOTAL LABOR HOURS	12.0	34.0	30.0	3.0	6.0	0.0		**85.0**		
		TOTAL LABOR COST	$3,960	$8,636	$6,000	$645	$750	$0	$0	**$19,991**		

Task Code	Sub Task	Description	Cultural Resource Consultants								Total Staff Hours *(ST)*	Total Cost	Task %
			Principal Investigator	Projects Manager	Project Archaeologist II	Field Archaeologist I	Historic Built Environment	Admin. & Financial Specialist	LABC7	ODCs			
			$153.38	*$96.60*	*$84.89*	*$64.98*	*$85.47*	*$101.28*	*$0.00*	*$1.00*			
											0.0	**$ -**	**0%**
7.0	**Cultural Resources (CRC)**												
	7.1	Cultural Resources Assessment	3.0	2.0	40.0	6.0	8.0	3.0		66.5	62.0	$ 5,492.92	100%
		0									0.0	$ -	0%
											0.0	**$ -**	**0%**
		TOTAL LABOR HOURS	3.0	2.0	40.0	6.0	8.0	3.0	0.0		**62.0**		
		TOTAL LABOR COST	$460	$193	$3,396	$390	$684	$304	$0	$67	**$5,493**		

Catherine Creek Bridge PSA

Final Audit Report 2025-05-08

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